

SOLICITATION, OFFER, AND AWARD				1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.				RATING		PAGE OF PAGES	
				2. CONTRACT NUMBER		3. SOLICITATION NUMBER		4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL		5. DATE ISSUED	
7. ISSUED BY				CODE		8. ADDRESS OFFER TO (If other than item 7)					

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____ (Hour) _____ (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME		B. TELEPHONE (NO COLLECT CALLS)			C. EMAIL ADDRESS	
			AREA CODE	NUMBER	EXTENSION		

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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)		10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)

14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):		AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE

15A. NAME AND ADDRESS OF OFFEROR		CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	

15B. TELEPHONE NUMBER			☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.	17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION			

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED		20. AMOUNT	21. ACCOUNTING AND APPROPRIATION	

22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()			23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM

24. ADMINISTERED BY (If other than Item 7)		25. PAYMENT WILL BE MADE BY	CODE

26. NAME OF CONTRACTING OFFICER (Type or print)		27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable

STANDARD FORM 33 (REV. 12/2022)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

SS67

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

1. This item is a CSI - Critical Safety Item.

2. See Section L for proposal submission instructions. Electronic submission of an offer may be accomplished by attaching your offer to an email directed to stacey.l.romberger.civ@us.navy.mil.

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	SS67 MK 109 Mod 1 Canopy Jettison Rocket Motor (CJRM) NAVAIR DWG 1507AS201 Total Quantity for CLIN- 198 Information Only - This item is used in the following Systems /Configurations: F-18 National Stock Number: 1377014549321				
0001AA	TECHNICAL DATA - See DD Form 1423, Exhibit A National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	1	Set		
	Additional Descriptive Data: This item is NOT SEPARATELY PRICED (NSP).				
0001AB	FIRST ARTICLE TEST SAMPLES Consists of: 20 Each for testing and 1 Each for investigative purposes Ownership Code: 3 National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	20	Each		
	Additional Descriptive Data: This item is NOT SEPARATELY PRICED (NSP).				
0001AC	INVESTIGATIVE UNIT(S) (FAT): Consists of: 20 Each for testing and 1 Each for investigative purposes Ownership Code: 3 National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	1	Each		

	Additional Descriptive Data: This item is NOT SEPARATELY PRICED (NSP).				
0001AD	FIRST ARTICLE TEST SAMPLES - C-BIT - C-BIT samples for each batch of propellant used in the First Article Test Samples IAW MIL-DTL-85097E Amd. 1 Ownership Code: 3 National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	5	Each		
	Additional Descriptive Data: This item is NOT SEPARATELY PRICED (NSP).				
0001AE	FIRST ARTICLE TEST SAMPLES - GRAIN - Propellant grain samples for each batch of propellant used in the First Article Test Samples IAW MIL-DTL-85097E Amd. 1 Ownership Code: 3 National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	2	Each		
	Additional Descriptive Data: This item is NOT SEPARATELY PRICED (NSP).				
0001AF	FIRST ARTICLE TEST SAMPLES - BLOCKS - Blocks of cured propellant from each batch of propellant used in the First Article Test Samples IAW MIL-DTL-85097E Amd. 1 Ownership Code: 3 National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	4	Each		
	Additional Descriptive Data: This item is NOT SEPARATELY PRICED (NSP).				
	PRODUCTION LOT TEST SAMPLES Consists of: 1 Lot of 198 each net, plus an additional 21 each per lot for test. (20 each for test and 1 each for investigative purposes.)				

0001AG	Ownership Code 3 National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	20	Each		
	Additional Descriptive Data: This item is NOT SEPARATELY PRICED (NSP).				
0001AH	INVESTIGATIVE UNIT Consists of: 1 Lot of 198 each net, plus an additional 21 each per lot for test. (20 each for test and 1 each for investigative purposes.) Ownership Code 3 National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: This item is NOT SEPARATELY PRICED (NSP).				
0001AJ	SS67 MK 109 Mod 1 Canopy Jettison Rocket Motor (CJRM) NAVAIR DWG 1507AS201 FMS Case- FI-P-PAH / 26P02FI 006 Ownership Code 8 NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	6	Each		
0001AK	SS67 MK 109 Mod 1 Canopy Jettison Rocket Motor (CJRM) NAVAIR DWG 1507AS201 FMS Case- KU-P-PAH / 26P03KU 038 Ownership Code 8 NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	42	Each		
	SS67 MK 109 Mod 1 Canopy Jettison Rocket Motor (CJRM) NAVAIR DWG 1507AS201				

0001AL	FY26 PANMC F/A18 Ownership Code: 5 NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. National Stock Number: 1377014549321 Pricing Arrangement: Firm Fixed Price	150	Each		
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Section C - Description/Specifications/Statement of Work

SECTION C - DESCRIPTION AND SPECIFICATIONS

NOTE 1: NON-ANTICIPATION OF INITIAL DEVIATIONS ON AWARDS

Offerors are reminded that any resultant contract will require performance in strict compliance with the specifications set forth therein, and that prices offered should not be predicated upon Contractor anticipation of Government authorization of deviations, even though such deviations may have been granted previously under other contracts for the same item.

NOTE 2: SPECIFICATIONS THAT DO NOT INDICATE SPECIFIC REVISION LEVELS ARE TO BE MADE TO THE REVISION LEVELS LISTED IN THE ASSIST DATABASE AT <http://assist.daps.dla.mil> IN EFFECT AT THE TIME OF SOLICITATION ISSUANCE.

1. DATA LIST / PART NUMBERS / DRAWING NUMBERS:

CLIN	DATA LIST / PART OR DRAWING NUMBERS	REVISION	REVISION DATE
0001	DL1507AS201, MK 109 MOD 1 CJRM	P	1/13/2026

- a. EXCEPTION to MIL-DTL-95097/13 ([Approved ECP25-0013](#))

2. SPECIFICATIONS:

CLIN	SPECIFICATIONS	REVISION	REVISION DATE
0001	MIL-DTL-85097	E Amdt. 1	07/2/2001
0001	MIL-DTL-85097/13(OS)	C	04/20/2000
0001	DTL-WS-35787 (OS) NSWC/IH-EC-8 PROPELLANT (MOD 2, HTPB)	N/R	09/27/2017
0001	NSWC IHD 510-174TD-005 (Liner, NSWC/IH-LINEC-8)	-	08/04/1997

3. Obsolescence Alert Notice: The contractor shall notify the USG that a pending and/or emergent obsolescence issue exists by submitting a Obsolescence Alert Notice in accordance with DD1423, sequence number A001.

4. DMSMS Report: Diminishing Manufacturing Sources and Material Shortages (DMSMS) is the loss, or impending loss, of manufacturers or suppliers of items, raw materials or software. The obsolescence alert notice shall contain:

- Contractor's Name
- Contractor's Address
- Contractor's Phone Number
- Date of Notification
- Contract Number
- Obsolescence Alert Notice Number
- Affected Equipment Title/Nomenclature
- Part Number
- National Stock Number, if applicable
- Affected Assembly Title/Nomenclature

- a. Part Number
 - b. National Stock Number, if applicable
11. Affected Subassembly/Element/Module Title/Nomenclature
- a. Part number
 - b. National Stock Number, if applicable
12. Contractor's Statement of Impact
13. Contractor's Recommendation to Mitigate Obsolescence Issue/Problem, to include, as applicable:
- a. Alternative Sources
 - b. Hardware Redesign
 - c. Out of Production Non-Recurring Engineering
14. Contractor's Cost Estimate to Mitigate Obsolescence Issue/Problem

The Contractor shall submit a DMSMS Health Assessment Report for approval/disapproval as specified in Contract Data Requirements List (CDRL) DD Form 1423, sequence number A002 and in accordance with Electronic Code of Federal Regulations (CFR) 48 CFR 2.101. Data delivered using the DMSMS Health Assessment Report will be used to support DMSMS management activities as a part of the Department of Defense (DoD) Total System Life Cycle Management responsibilities.

5. Project Planning Chart: The Contractor shall submit project planning charts for each production and first article test (FAT) lot for approval /disapproval as specified in Contract Data Requirements List (CDRL) DD Form 1423, sequence number A003. Submittal shall be 120 days after award and every 120 days thereafter until contract close-out actions are completed. The Project Planning Chart depicts the schedule and actual progress of work on a contract. This status or progress report shall illustrate the amount of work accomplished relative to the work schedule. Additionally, the contractor shall conduct two project management reviews per year with the Government to detail project planning execution with the customer until contract close-out actions are completed. The content of the Project Planning Chart shall include:

- 1. Depiction of the actual and scheduled progress for each subdivision using horizontal lines and symbols. Actual progress will be noted by a percentage of the completion figure.
- 2. Subsequent additions to the work breakdown shall be made as they occur in contract work performance. Items shall not be deleted even though work may be cancelled or stopped before completion.
- 3. Description entry on the chart will be by task. Tasks are divided into subdivisions. Entries shall be complete and reflect all contract effort.
- 4. Milestone symbol. The triangle symbol will be white if the task has not been achieved. It shall be shaded if the task has been achieved.
- 5. Date released. Last date to which chart was posted.
- 6. Date revised. Date of subsequent contract modification.
- 7. Contractor name.
- 8. Contract title.
- 9. Contract number.
- 10. Purchase description number. Input NSN.
- 11. Security classification. Refer to Section I.
- 12. Delivery dates. Includes dates for all deliverable items.
- 13. Scheduled starting date. Date each subdivision of work is scheduled to start.
- 14. Actual starting date. Date each subdivision of work actually started.
- 15. Scheduled completion date. Date each subdivision of work is scheduled for completion.
- 16. Actual completion date. Date each subdivision of work actually was completed.

1. Configuration Control - The Contractor shall maintain the total equipment baseline configuration. For items of proprietary design, Contractor drawings showing the latest assembly configuration shall be provided to the Government in electronic format.

All contractor configuration changes that occurred between contract awards shall be submitted to the Government for approval within 45 days of contract award.

Any configuration changes after contract award shall be submitted within 45 days of contract award.

All configuration changes shall be submitted at least 60 days prior to Lot Acceptance Testing.

2. Variances - Requests for Variance (RFV) - RFVs shall be designated as Critical, Major, or Minor. The Contractor shall submit RFVs using RFV DD Form 1694 and shall include information as outlined in SAE EIA-649, Configuration Management Standard, and MIL-HDBK-61, Configuration Management Guidance, for additional guidance on preparation of RFVs.

Note: A copy of the required RFV Form DD Form 1694 is available at:

https://www.esd.whs.mil/Directives/forms/dd1500_1999/

Additional guidance for completion of RFV can be found at the Attachment "RFV Form DD1694 Example Only dated 02/21/2025". This attachment is incorporated by reference with the same force and effect as if contained herein.

The Contractor's assigned RFV number shall use the following numbering format:

- a. The last seven alpha-numeric characters of the contract number followed by a dash ().
- b. The letter "V", followed by consecutively assigned numeric characters beginning with 001.

Definitions of RFV Classifications: (See current SAE EIA 649 and MIL-HDBK-61, Configuration Management Guidance, for additional guidance on critical, major and minor classifications.)

Critical: Critical variances impact safety, health, environment, or other critical requirement. A departure from a requirement classified as critical in configuration documentation.

Major: Major variances have significant impacts such as performance or operational limits, structural strength, interchangeability, reliability, survivability, maintainability, durability of the item or repair parts, supportability, cost, effective use or operation, weight or size, or appearance. A departure from a requirement classified as major in configuration documentation.

Minor: Minor variances are issued when departure does not involve any of the factors listed for critical or major variance. Minor variances have little or no impact and are generally associated with non-functional factory defects that can be dispositioned locally as: "use as is" or "after suitable repair". A departure from a requirement classified as minor in configuration documentation.

3. Technical approval authority for RFVs and ECPs is NSWC IHD

4. Final approval of any ECP and/or RFV shall be in writing, by the Contracting Officer, NAVSUP Weapon Systems Support.

5. Contractors do not have Material Review Board (MRB) authority.

a. Authorization to accept "as-is" or repair any nonconformance is specifically retained by the Contracting Officer. The contractor's MRB shall not make any use "as-is" or "repair" disposition on any nonconformance, and the MRB recommendations shall be submitted per paragraph four (4) above.

b. Authorization to rework the lot prior to submission to the Government for inspection and acceptance is allowed for all parts, subassemblies, and even the end item that undergoes in-process screening for defects. Such rework under the direction of the contractor must ensure all parts meet the requirements of the Technical Data Package (TDP) and/or detailed specification.

c. Authorization to rework the lot after submission to the Government for inspection and acceptance is specifically retained by the contracting officer. The MRB recommendations shall be submitted per paragraph six (6) below. Rework of a lot to correct a deficiency after it has been presented to the Government may require the lot number and all the associated records to be changed, per the requirements of MIL-STD-1168.

If the contractor recommends, through an internal MRB, to process non-conforming parts, subassemblies, or the end item for use "as-is" or "repaired", then the contractor will be required to submit a Request for Variance (RFV) to the Government for disposition. If a non-conformance is discovered, which results in a failure of the item to meet the requirements of the TDP or detailed specification after the lot has been presented to the Government, then the contractor will be required to provide to the Government documentation such as RFVs, Discrepancy Reports (DR) related to contractor's MRBs, and/or rework procedures used to correct the deficiency (if applicable).

6. Rework and Repair are defined as follows:

a. Rework: The reprocessing of nonconforming material to make it conform completely to the drawings, specifications or contract requirements.

b. Repair: The reprocessing of nonconforming material in accordance with approved written procedures and operations to reduce, but not completely eliminate, the nonconformance. The purpose of repair is to bring nonconforming material into a usable condition. Repair is distinguished from rework in that the item after repair still does not completely conform to all of the applicable drawings, specifications or contract requirements.

SECTION C - IDENTIFICATION OF COVERED DEFENSE INFORMATION (In Reference to 252.204-7012)

1. In accordance with the DFARS clause at 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, the Contractor shall provide adequate security for all government and contractor owned Technical Data Packages (TDPs), drawings and item detail specifications on all covered defense information systems that support the performance of work under this contract.

Requirements

Section C Requirement Description - SS67 MK 109 Mod 1 Canopy Jettison Rocket Motor (CJRM) is a solid propellant rocket motor that ejects the canopy during emergency aircrew ejection from the F-18 aircraft.

Section D - Packaging and Marking

SECTION D - UID CAD/PAD ITEM MARKING INFORMATION

Unless otherwise specified in the Technical Data Package (TDP), CAD/PAD items **shall** meet the Human Readable Information (HRSI) marking requirements of paragraph 3.1 of the attachment "CAD/PAD Item Marking Instruction Version 1.6". The Machine Readable Information (MRI) Data Construct, paragraph 3.2, and Placement of Unique Identification (UID), paragraph 4, are mandatory requirements.

NOTE: UID marking is **REQUIRED** for investigative units (also known as retains). UID reporting under the WAWF DD250s is not required for investigative units.

SECTION D - PACKING, MARKING, AND TRANSPORTATION

1. Preservation, packaging, packing, and marking **shall** be in accordance with MIL-STD-129, MIL-STD-2073, CFR 49 171-178, MIL-STD-130, DLAR 4145.41, and Section Five (5) of Specification MIL-DTL-85097E (OS).
2. Packaging and packing for production lots, first article samples and lot acceptance samples **shall** be IAW the following by item:

CLIN	QUP	IAW
0001	1 Per Box	MIL-DTL-85097E1

NOTE: Quantity per Unit Pack (QUP) is defined as the first tie, wrap, or container applied to a single item, or a quantity thereof, or to a group of items of a single stock number, preserved or unpreserved, which constitutes a complete or identifiable package.

3. Labels for Human Readable Information (HRI) and Machine Readable Information (MRI) **shall** meet the requirements for a Grade A, Style 2, Composition (b) label as specified in MIL-PRF-61002. The performance requirements for solvent and detergent resistance are not required. The label should be the pressure sensitive adhesive type.
4. Human Readable Information (HRI) markings **shall** be applied to ammunition, explosives containers and units loads IAW the applicable provisions of MIL-STD-129.

- a. At a minimum, inner container markings for CLIN 0001 **shall** include:

National Stock Number and (DoD) Code: *(see Section "B" for applicable CLIN)*

Item Nomenclature: *(see Section "B" for applicable CLIN)*

Item Assembly Drawing Number: *(see Section "B" for applicable CLIN)*

Quantity: As Applicable

Lot Number: IAW MIL-STD-1168

Serial Number: Required (x) N/A ()

- b. At a minimum, outer container markings for CLIN 0001 **shall** include:

National Stock Number and (DoD) Code: *(see Section "B" for applicable CLIN)*

Item Nomenclature: *(see section "B" for applicable CLIN)*

Item Assembly Drawing Number: *(see Section "B" for applicable CLIN)*

Quantity: As Applicable

Lot Number: IAW MIL-STD-1168

Serial Number: Required (x) N/A ()

Gross Weight and Cube: As Applicable

DoD Contract Number: As Applicable

POP Markings: (see Section "D" - Packaging, Marking and Transportation paragraph 6a - below.)

UN Proper Shipping Name, UN Number, Hazard Class, Compatibility Code, Net Explosive Weight, and EX Number: (see TABLE 1 below for applicable CLIN)

CAA: USG DOT 'EX NUMBER'

(see TABLE 1 EX NUMBER COLUMN below for applicable CLIN) Example CAA: USG DOT 880832

Table 1: United Nations Shipping/Storage Information						
CLIN NUM	UN Proper Shipping Name	UN Number	Hazard Class	COMPA. Code	Net Explosive WT (lbs)	EX Number
0001	Rocket Motor	0186	1.3	C	1.01 lbs	1999100217

5. Machine Readable Information (MRI) markings **shall** be applied to ammunition, explosive containers and unit loads IAW the following coded elements of data from MIL-STD-129. MRI labels **shall** be able to be read and interpreted by automatic bar code reading devices (scanners). MRI markings **shall** contain the minimum data elements identified below:

a. Inner container:

- (N) National Stock Number: (see Section "B" for applicable CLIN)
- (4R) Department of Defense identification code (DODIC): (see Section "B" for applicable CLIN)
- (1P) Item Assembly Drawing Number: (see Section "B" for applicable CLIN)
- (1T) Lot Number: IAW MIL-STD-1168
- (S) Serial Number: Required (x) N/A ()

b. Outer container:

- (N) National Stock Number: (see Section "B" for applicable CLIN)
- (4R) Department of Defense identification code (DODIC): (see Section "B" for applicable CLIN)
- (1P) Item Assembly Drawing Number: (see Section "B" for applicable CLIN)
- (7Q) Quantity: As Applicable
- (1T) Lot Number: IAW MIL-STD-1168
- (S) Serial Number: Required (x) N/A ()

NOTE: The parenthesis surrounding the data elements are NOT encoded in the 2D(PDF417) bar code.

6. Shipment of hazardous material (which includes devices containing energetic and explosive material) is subject to the requirements of Title 49, Code of Federal Regulations (CFR), the International Maritime Organization's International Maritime Dangerous Goods (IMDG) Code, and the International Civil Aviation Organization (ICAO) Technical Instructions for the safe transport of hazardous goods. The **contractor shall** make all shipments of hazardous material in packaging approved by Performance Oriented Packaging (POP) testing within its recertification period. If packaging used exceeds a single periodic retest period as regulated in 49 CFR 178.601 or comes from multiple manufacturers, multiple or additional POP Test Reports covering all periods of manufacture/manufacturers are required.

6a. For special packaging instructions (SPI) of USAF origin, the **contractor may** inquire about receiving a copy of the latest DOD performed POP test. Inquiry **shall** be in writing to the contracting officer a minimum of 30 days prior to need.

NOTE: Foreign Military Sales (FMS) Shipments: As applicable, all outer containers should be clearly marked with the FMS Case Designation, Requisition Number and Project Code, and Country Specific EX Numbers for NOA required shipments- See Section "F" for proper identification.

7. Traceable seals are required for all ammunition and ordnance items, including inert configuration items. Traceable seals provide an indication of security, integrity and certification of material serviceability. Traceable seals ensure that the ammunition, ordnance and/or inert item is not pilfered or tampered with after being placed in each shipping container at the time of packaging. The shipping container will normally be the outer container.

The Contractor **shall** ensure one of the below traceable seals are properly affixed depending on the type of shipping container.

- a. Type 1 TRACEABLE SEALS (WIRE SEALS): Type 1 seals are the preferred seals for containers having provisions or means for application of the seals, e.g., metal, plastic, fiberglass, or wood containers with lids or hinged covers, latches, brackets or flanges. A Type 1 seal is, typically, a wire length with an aluminum disk or pellet which is crimped or crushed using a die which imprints a "U.S." symbol on one side of the disk/pellet with an individual's traceable serial number on the reverse side of the disk/pellet.

b. Type 2 SEALS (LABEL SEALS): Type 2 seals are the preferred seals for fiberboard or Styrofoam containers or for metal, plastic, fiberglass or wood containers that will not readily accept Type 1 seals. Type 2 seals are, typically, nonmetallic labels with pressure sensitive backing. They may be pre-printed, stamped or marked with a "U.S." symbol. Type 2 seals **shall** be applied such that the label must be cut or defaced in order to open a container. Adhesives **shall** adhere well enough to prevent peeling during shipping conditions and well enough to prevent lifting and replacement of the label. Particular consideration **shall** be given to label seals required to adhere to wood and fiberboard surfaces.

8. Restrictions Involving Non-Manufactured Wood Packaging (NMWP) and Pallets (per Defense Logistics Agency Directive subpart 47.305-1(c) (90): "**All** wooden pallets and wood containers produced of non-manufactured wood **shall** be constructed from Heat Treated (HT to 56 degrees Centigrade for 30 minutes) material and certified by an accredited agency recognized by the American Lumber Standards Committee (ALSC) in accordance with Non-manufactured Wood Packing Policy and Non-manufactured Wood Packing Enforcement Regulations, both dated May 30, 2001."

SECTION D - PALLETIZATION

Production Lot units **shall** be palletized in accordance MIL-STD-1322, MIL-STD-1322-1000, MIL-STD-129, MIL-STD-130, and CFR 49 171-178 with the following **exception**:

- a. Edge protectors **shall** be used under all strapping.

Section E - Inspection and Acceptance

SECTION E - PRODUCTION LOT TEST SAMPLES (NSWC IHD TESTING)

1. Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001AA Technical Data	See DD1423	See DD1423	See DD1423	See DD1423
0001AB First Article Testing	Contractor	Government	Destination	Government
0001AC FAT Investigative Units	Contractor	Government	Destination	Government
0001AD First Article Testing - C-Bits	Contractor	Government	Destination	Government
0001AE First Article Testing - Grains	Contractor	Government	Destination	Government
0001AF First Article Testing - Blocks	Contractor	Government	Destination	Government
0001AG Lot Acceptance Testing	Contractor	Government	Destination	Government
0001AH LAT Investigative Units	Contractor	Government	Destination	Government
0001AJ-0001AL Production Units	Contractor	Government	Contractor	Government

If supplies will be packaged at a location different from the offeror address indicated on the solicitation, the offeror shall provide the name and street address of the packaging location:

Packaging House

Address

2. Test samples are required from each production lot. A production lot shall consist of the net deliverable quantity plus additional units for lot test samples and any retains for investigative purposes (if applicable) as detailed in section B. The performance, tests, and/or other characteristics, which the sample units must meet, shall be in accordance with the requirements of Section C of this contract (unless following the exception noted in paragraph 3 below).

3. The contractor is allowed to pre-select no more than 30% of the required production lot test samples per lot which have minor external cosmetic defects such as nicks, dings, scratches, paint blemishes, plating blemishes, and small burrs. These units can be used as pre-selected production lot test samples as long as the defects do not create an interference with the form, fit, or function of the unit and/or test fixture. The selection of the production lot test samples shall be noted in a discrepancy report (DR) identifying the item part number, DODIC, contract, lot number, serial numbers of the pre-selected units, and the cosmetic defects of each serial number. A copy of the DR shall be submitted to the Contracting Officer. A second copy of the DR shall be submitted to DCMA/QAR when presenting the production lot for random selection of the remaining lot test samples as stated in paragraph 4 below. The contractor shall also annotate the DR number in the remarks section of the ADC for the applicable production lot. This clause is only applicable to the production lot test samples and the external cosmetic defects mentioned above. If additional units with minor external cosmetic defects are part of the deliverable lot and the contractor would like for the government to accept those units "as is", then a RFV shall be submitted to the Contracting Officer for the determination of disposition for those non-compliant deliverable units.

4. The production lot(s) must be manufactured and presented to the Government Quality Assurance Representative (QAR) with all applicable documentation. The documentation (WAWF-RRs and Ammunition Data Card printed from WARP) accompanying the production lot shall contain the contract number, item, lot number identification, DODIC, NSN, and serial numbers. The production lot test samples shall be selected, at random (unless following the exception noted in paragraph 3 above), from each production lot, by the QAR. The retains are considered part of the production lot test samples and shall also be selected, at random, from each production lot, by the QAR and identified as such.

NOTE: Sample units removed for testing from different lots shall not be commingled.

5. After the selection of the production lot samples and all required data, the samples shall be furnished and shipped by the Contractor to the testing activity set forth in Section F within 15 calendar days of selection at no additional charge to the Government. The production lot test samples shall not be considered received until all data necessary to evaluate the samples is received. (This data includes, but is not limited to, radiographic requirements specified in Section E - Inspection and Acceptance, Ammunition Data Card from WARP, and WAWF-RR.)

6. The following activity will conduct production lot testing: Naval Surface Warfare Center Indian Head Division

7. *Disposition of Production Lot Test Samples -*

The production lot samples might be subject to Non-Destructive Test (NDT) depending on the requirements delineated by the TDP and/or item specification specified in section C.

NOTE: If a test failure occurs during the Non-Destructive Test (NDT) phase of LAT, the engineering activity is authorize to continue with the remainder NDT series prior halting test (i.e. resistance failure and leak test still remains).

The production lot test samples are also subjected to destructive testing. These units cannot be used to meet fleet support requirements. Samples tested will not be returned to the Contractor. However, in the event there is a failure, or samples are rejected for some other reason, the Contractor

may request the return of the affected samples and/or the entire production lot samples for disposition/examination and/or investigation. The written request to return rejected samples and/or the entire production lot samples shall be received by the Contracting Officer within fifteen (15) calendar days after notification of rejection. Any samples returned will be at the Contractor's expense.

8. All other contractual requirements, such as acceptance, shipment, and payment will not be accomplished until the production lot test samples have been tested, approved, and released for service use. The Contractor shall not make shipment of the production lot until receipt of written notification of approval by the Contracting Officer and final approval of the Material Inspection Receiving Report in Wide Area Workflow (WAWF).

9. The only valid and contractually binding notification of production lot approval, conditional approval, or disapproval shall be in writing and issued by the Contracting Officer. This notification shall be made to the Contractor, within sixty (60) calendar days, after receipt of the production lot test samples, all required CDRLs and all necessary data by the Government Testing Activity. Any CDRLs provided by the Contractor deemed to be inaccurate and/or incomplete after engineering review will automatically reset the notification of production lot approval, conditional approval, or disapproval. Upon receipt of written notice accepting a production lot, shipment shall be made as soon as possible and no later than fifteen (15) calendar days after receipt of such notice.

a. Any notice of approval or conditional approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract.

b. A notice of conditional approval shall state any further action required by the Contractor.

c. A notice of disapproval shall cite reasons for such. In the event of a failure, the Contractor shall submit a Failure Analysis and Corrective Action Report (DD Form 1423, sequence number, **A004**) with all associated costs and expenses to be borne solely by the Contractor. "Failure" is defined as follows:

(i) Any of the test samples failing to meet the requirements of the specification and/or drawing,

(ii) Any of the test samples fracturing and/or exhibiting any cracks post-firing, unless specifically designed to do so,

(iii) A non-ignition or failure to fire.

10. At a minimum, the following is required:

a. Failure date

b. Failed part number (e.g. national stock number (NSN), logistics control number, work unit code)

c. Test or mission being performed when the failure occurred(LAT/FAT)

d. Failure symptoms and description of detection or diagnosis methods (e.g. Built In Test)

e. Failure effects (e.g. none, degradation, abort)

f. Repair action (e.g. remove/replace)

g. Failure mode description

h. Failure mechanism/cause of failure

i. Contributing factors, including multiple factor interactions, or secondary effects of the failure

j. Corrective action required to mitigate the failure mode, including:

- Identification of the failure mode

- The recommended process or process control changes, when the failure cause is due to workmanship defects

- Proposals for retrofit of all equipment already delivered or assembled, including recommended effectivity, in accordance with the contract

- Disposition of all defective material and material rendered obsolete because of any necessary redesign, to assure their exclusion from production items

- Identification of previous functional and environmental qualification tests, if any, invalidated by the corrective action changes and recommendation of those tests that should be repeated, in accordance with the terms of the contract, to demonstrate the corrective action's effectiveness.

11. If the production lot test sample is disapproved by the Government, the Contractor may be required, at the option of the Government and at the Contractor's sole cost and expense, to submit an additional production lot test sample(s) for test. After each notification by the Contracting Officer to submit an additional production lot test sample(s), the Contractor shall, at no additional cost to the Government, make any necessary changes, modifications, or repairs to the production lot or the Government QAR may be required to select another test sample for testing. Such additional test sample(s) shall be furnished to the Government under the terms and conditions and within the time specified in the notification. The Government

shall take action on this test sample(s) within sixty (60) calendar days after receipt. The cost of each additional approval, and all costs and expenses related to such test(s) shall be borne solely by the Contractor.

Retest Cost for Item 0001 is: \$55,102.70. (NOTE: Test costs are based on actual rates in effect at the time of issuance of the solicitation. In the event of a test failure, actual cost at the time of retest will be assessed.) The Government reserves the right to require an equitable decrease of the contract price for any extension of the delivery schedule necessitated by additional tests.

12. If the Contractor fails to deliver any production lot test sample(s) within the time or times specified, or if the Contracting Officer disapproves any of the required CDRLs, the contract may be deemed to have failed to make delivery within the meaning of the "Default" clause of this contract, and this contract may be subject to termination for default. In such an event, failure of the Government to terminate this contract for default shall not relieve the Contractor of the responsibility to meet the delivery schedule for production quantities.

SECTION E - CAD/PAD INSPECTION AND ACCEPTANCE

1. Inspection and acceptance shall be in accordance with MIL-DTL-85097E(OS), MIL-DTL-85097/13(OS), DTL-WS-35787, NSWC IHEODTD 510-174TD-005, and DL 1507AS201

2. The Government reserves the right to invoke the requirement for First Article Testing (FAT) if there is a change in process, facilities, materials, equipment, or production of the item. "Process" is defined as the steps or tasks that are performed to create a product. An example of a process change that could invoke FAT is implementation of a new production line. "Facilities" is defined as location or buildings where the process(es) are performed to manufacture a product. A contractor may have several buildings already approved for manufacture of the item that do not require notice if already approved. "Materials" is defined as all the raw ingredients that are used in the manufacturing of the item. An example of a material change that could invoke FAT is a new energetic material supplier, which will need to meet the requirements of the applicable specification. "Equipment" is defined as all the tools used to manufacture a product. An example of an equipment change that could invoke FAT is a machine upgrade that changes energetic material processing technique. "Production" is defined as to make, manufacture, or create a product. An example of a production change that could invoke FAT is a revised method to manufacture delay composition. FAT can also be invoked if two years or more have passed since the item was last manufactured, or if the item has developed a manufacturing or performance related issue that can affect form, fit, or function such as changes to technical requirements, performance, interoperability, supportability, maintainability, or safety.

If there is a desire to have predetermination of a potential change to the process, facilities, materials, equipment, or production of the item, a proposal describing the change and any supporting documentation should be written in a formal letter and provided to the Contracting Officer. The Contracting Officer will provide the letter with the supporting documentation of the proposed changes to the cognizant engineering activity. A formal response on the determination of whether an FAT is required may be provided within fifteen (15) business days after receipt from the Contracting Officer.

Note: The examples provided above are not meant to be all inclusive. The Government shall have the final decision if FAT is invoked based on the proposed change submitted by the contractor as well as the Technical Data Package and/or item specification incorporated by reference in Section C.

3. The Contractor shall provide and maintain a quality program acceptable to the Government and modeled on ISO 9001:2015 or an equivalent quality system. If the quality program is not modeled on ISO 9001:2015 the offeror/prospective Contractor shall indicate the quality system proposed along with how it is equivalent, under separate letter submitted with the offer/proposal.

ISO 9001:2015 Other

This quality system along with program specific production documentation shall be made available for review by the Government's representative upon request, at the Contractor's facility at no cost to the Government.

4. Due to the critical nature and safety application of these items, the Contractor and the QAR are cautioned that it is mandatory to ensure the correct identification and nomenclature are assigned for all items and shipping containers prior to shipment including CAGE codes. CAD/PAD Devices are exempt from MIL-STD-129 shelf life markings on packaging; however, they shall have a minimum of 85% of the shelf life remaining at time of delivery. Any delivery from a contractor not having at least 85% shelf-life remaining shall be considered non-conforming.

NOTE: The shelf life for CLIN 0001 is: **12 years and 0 months.**

5. Radiographic equipment and procedures shall meet the standards stipulated in the latest revision specification ASTM E1742. Neutron radiography (N-rays), when required for a specific item, shall meet the requirements of ASTM E748 and ASTM E545.

6. Radiographers shall be certified level II or III and qualified in accordance with the requirements described in specification NAS 410.

7. Radiographic Test Technique (RTT) shall include variables which affect the exposure, such as x-ray source, kV or MeV (voltage), mA (current), SFD (Source to Film Distance), or SDD (Source to Detector Distance), exposure time, and film type/detector, and include a diagram or photo of the test setup.

8. Radiographic Test Technique for X-rays and N-rays, as applicable, shall be submitted with the First Article Test (FAT) samples to the activity cited below. If there is no FAT requirement, the radiographic test technique for X-rays and N-rays, as applicable, shall be submitted to the activity below as described in paragraphs 8a and 8b herein.

(NO EXPLOSIVES TO BE SENT TO THIS ADDRESS)

NSWC IHD

CAD/PAD DIVISION BLDG 1557

ATTN: AMS Per Section H

4393 BENSON ROAD

INDIAN HEAD MD 20640-5092

a. Test technique information for ALL radiographs is specified in section 6 of ASTM E1742, refer to Contract Data Requirement List (CDRL) DD Form 1423 sequence number **A005**. The radiographic images shall display a number of units representative of a production lot. Units shall be positioned on the radiographic plate at the areas of minimum and maximum geometric distortion.

9. Notification of approval of the RTT shall be provided via Wide Area Workflow (WAWF). Written notification of rejection will be provided by the Contracting Officer. Approval of the RTT must be received prior to performing radiographic inspection of the production lot units. The Contractor shall then follow the approved technique to produce subsequent radiographs in accordance with the approved RTT. Any change in the approved radiographic technique or equipment requires submittal and approval of new RTT at the Contractor's expense.

a. There is hereby created an option for the Government to waive the requirement for submission of a RTT. The Contractor may only request a waiver for the submission of the RTT as long as the Cognizant Engineering Organization (CEO), which is NSWC IHD, has an approved RTT on file from a previous contract, and the x-ray equipment or RTT has not changed since the referenced contract. The following information shall be furnished by the Contractor when submitting the waiver for RTT:

Approved by _____

Date of approval _____

Contract number under which RTT was approved _____

b. If the submission of the RTT is waived, the previously approved technique shall apply to the contract.

c. If the Contractor requests waiver of submission of the RTT after time of award, an offer of adequate consideration shall accompany the request. In order to fulfill contractual requirements, the Contractor must submit acceptable radiographs. Radiographs should be reviewed by a Level II or Level III certified radiographer in accordance with NAS 410. A radiographic report, including a list of serial numbers inspected, serial numbers rejected, and reason(s) for rejection will be submitted with the radiographs. Radiographs not conforming to the requirements specified herein will not be accepted by NSWC IHD. Disposition of nonconforming radiographs will be by mutual agreement of the parties.

10. In order to fulfill contractual requirements, the Contractor shall submit acceptable radiographs for each Contract Line Item. Radiographs shall be of an image quality to effectively inspect for acceptable assembly of components and defects. Radiographs should be reviewed by a Level II or Level III certified radiographer in accordance with NAS 410. Radiographs not conforming to the requirements specified herein will not be accepted by NSWC IHD. Disposition of nonconforming radiographs will be by mutual agreement of the parties.

11. Representative Quality Indicators (RQI) are recommended to be used on radiographic film or digital images for all CAD/PAD devices. The RQI (also known as a defect standard) contains a known defect (i.e. missing explosive charge, missing O-rings, etc.) placed next to a good unit for comparison, to aid in interpretation. Radiographic test technique shall include RQI to be used and RQI placement.

Propellant grains on PAD devices should be radiographed on film separately from the fully assembled unit even if the final assembly is radiographed using an approved digital radiographic technique. Image Quality Indicators (IQIs) on the radiographic film or digital image must also be used for radiographs of propellant grains for all PAD devices. The penetrometer to be used on the propellant grain radiographs must be made of Magnesium, which is radiographically similar to the propellant. The thickness of the penetrometer must be 2% of the total propellant thickness. The placement of the penetrometer(s) shall be on the part nearest the edge of the film cassette, at the outer edge of the cone of radiation. This allows for the measurement of the image quality or contrast sensitivity at the area of maximum geometric sharpness. The penetrometer sensitivity must be 2-2T unless otherwise noted in the drawings or specification for the item being procured.

12. The Contractor shall submit radiographs as marked (X) below:

X-RAYS (per applicable spec)	N-RAYS (per ASTM E748)	Sample / LOT Description
X		First Article Sample
X		Lot Acceptance Test Samples
X		Production Lot Units
		Explosive Sub-Assemblies (i.e., NON-GFP CTGS, Booster Sleeves, etc.)

Radiographs of Production Lot Units shall include Lot Acceptance Testing (LAT) samples.

13. Neutron radiographs (N-rays) shall be produced using film (conventional techniques). Radiographs (X-ray) shall be produced using non-film (digital) techniques such as Digital Detector Array (DDA), or Computed Radiography (CR), with the understanding that the Contractor must be qualified and given prior approval to use digital radiography by NSWC IHD. A qualification plan must be submitted to the Level III Radiographer at NSWC IHD for review prior to qualification of the digital x-ray system. Once the qualification plan has been reviewed and approved, the Level III Radiographer at NSWC IHD will conduct a site visit (i.e. audit) to witness the qualification of the digital x-ray system. The results of the tests performed during the digital x-ray system qualification will be documented in a qualification plan, which will be submitted to the Level III Radiographer at NSWC IHD. At a minimum, the qualification plan shall include information such as the type of system (Make/Model of DDA or CR system, x-ray sources etc.), as well as the specific types of tests (performance checks, as described in the ASTM standards) to be performed to verify the performance of the system. The tests are described in the appropriate ASTM standards (i.e. ASTM E2445 and ASTM E2033 for CR, and ASTM E2737 and ASTM E2698 for DDA systems). An official approval letter will then be issued by the Commanding Officer, NSWC IHD, which authorizes the use of the digital system. Follow up audits at regular intervals of every five years may be conducted to assure the long term stability and performance of the digital x-ray system. If digital radiographs are submitted, they shall be in the form of raw data that is Digital Imaging and Communication in Nondestructive Evaluation (DICONDE) compliant. In addition to the raw DICONDE data, 16 bit Tagged Image Format (TIF) images of the digital radiographs must be submitted. The qualification of non-film techniques will be done IAW the latest versions of standards referenced in the latest version of ASTM E1742 (currently ASTM E1742/E1742M-12), such as ASTM E2698 and ASTM E2737 (for the qualification of Digital Detector Array (DDA) detectors), or ASTM E2033 and ASTM E2445 (for the qualification of Computed Radiography (CR) systems).

14. When submitting the radiographic images, the Contractor shall also submit a report of radiographic inspection. This report shall clearly indicate the units subjected to radiographic inspection by the following data:

- Item Nomenclature and DODIC
- Span of serial numbers displayed
- Complete lot number
- Missing units by serial number
- Complete contract number
- Nonconforming units by serial number and reason
- Government drawing or part number for rejection

NOTE: For the span of serial numbers, include list of serial numbers for units that have been accepted. Any units found to be nonconforming shall be clearly identified. The specific nature of the non-conformance shall be cited, as well as any assignable cause or analysis related to the occurrence.

15. When undergoing radiographic inspection, each unit in the sample or lot shall be permanently serialized in consecutive numerical order per MIL-STD-1168 before radiographic inspection. Serial numbers shall not be repeated on items with the same part number regardless of changes in the lot number. The numbering shall be from left to right, top to bottom with the first item on the left of each row having the lowest serial number. All annotation must be represented using a method which leaves a permanent image on the radiograph, such as placing lead letters on the film cassette or digital detector prior to each exposure. It is NOT acceptable to use adhesive labels, or to write annotation on the radiograph using a marker or other writing instrument. Units that are missing on a radiograph must be indicated by identifying the serial number of the unit immediately preceding, and immediately following, the missing unit(s). All units shall be arranged on trays or boards in consecutive numerical order. Radiographs shall reveal internal components. This may require using various techniques which may include multiple exposures, multiple speeds of film being loaded for each exposure, or additional orientation of unit(s) i.e. 0 degree and 90 degree exposures. Any discontinuities in the serial numbers displayed shall be clearly marked on the representative radiographic image. Specific reasons for the missing serial number(s) and all rejects from the Contractor and QAR inspections prior to radiographic inspection shall be recorded on the radiographic inspection report as described in paragraph 14 and forwarded with the LAT sample. Row-unit-quantities shall be consistent except the ending row of the production lot, which may vary. In addition, serial numbers shall appear at the end of each row when more than 100 units appear on one radiograph image; these serial numbers may appear on tape and be affixed to the radiograph.

16. This radiographic image and report shall be shipped prepaid. The delivery of the radiographic image and report shall be in accordance with Contract Data Requirement List (CDRL) DD Form 1423, sequence number **A006**. The film shall be placed in film envelopes or sleeves. Radiographic film shall be placed into an appropriate shipping container that will not damage the film. The film envelopes shall be placed in either a fiberboard, cardboard, or wooden box. X-rays or N-ray film shall not be placed directly into a shipping container (i.e. FedEx or UPS box). X-ray or N-ray film shall not be rolled up and placed in a shipping tube. When approved for digital radiography, digital radiographic images shall be shipped prepaid on a compact disc (CD). Digital radiographic images shall not be submitted on USB flash drives.

- a. Digital radiographic images may also be submitted electronically through DoD SAFE in addition to CD shipment to improve efficiency in initial Government review. Electronic submission shall optionally be in addition and shall not replace CD shipment for long-term Government storage purposes.
- b. Requests for DoD SAFE links for digital radiographic image submission shall in writing (e-mail) to the AMS listed in Section H with the contracting officer on copy.

17. All radiographic images shall be retained by the Government. All radiographic images shall display a permanent identification of the following information:

- Item Nomenclature and DODIC
- Government Drawing or Part Number
- Complete Lot Number
- Span of Serial Numbers Displayed
- Complete Contract Number
- Name of radiographic facility
- Date of radiograph

18. All documentation, i.e., packing slip, invoice, WAWF-RR, etc., accompanying the radiographic images shall clearly indicate, as a minimum, the following information:

- Contract Number
- Item Nomenclature
- National Stock Number (NSN)
- Department of Defense Identification Code (DODIC)
- Lot Number

19. Due to the critical nature and safety application of these items, the Contractor and the QAR are cautioned that it is mandatory to assure the correct identification and nomenclature are assigned for all item and shipping containers prior to shipment.

20. The Contractor shall have the ballistic test fixtures and/or capabilities to assure that the item being procured meets the specification requirements.

21. The Contractor shall provide, upon Government request and at Contractor's own cost, copies of all certificates of compliance for all materials (mechanical properties, alloying) and all quality conformance tests (Hydrostatic, X-ray, Protective Finish, Magnetic Particle, Dye Penetrant).

22. Items containing explosive subassemblies or serialized parts shall be identified on a Marriage Log. The Marriage log shall be in the Contractor's choice of format and must contain the

- (a) Contractor name
- (b) nomenclature
- (c) contract number
- (d) major subassembly serial numbers and the matching end item serial number
- (e) lot number of end item and lot number of assembly and subassembly IAW MIL-STD-1168 (Section E - Ammunition Data Cards and Material Inspection and Receiving Report)
- (f) name of individual completing marriage log
- (g) date log completed
- (h) name and signature of Quality Assurance Inspector. The Marriage Log shall be submitted for each First Article Test sample (if applicable) and for each lot acceptance test sample, DD Form 1423, sequence number **A007**.

23. All primers are to be X-rayed prior to loading into the next higher level of assembly.

24. In the event the First Article test sample fails to meet the requirements of the specification or drawing, the contractor may be required to submit a Failure Analysis and Corrective Action Report (DD Form 1423, sequence number, **A004**).

25. The contractor shall permanently serialize all First Article components and maintain traceability to inspection/acceptance data and end item serial number.

26. The first article test samples shall not be considered received until all data necessary to evaluate the samples as received, such as: radiographic requirements specified in Section E-Inspection and Acceptance, DD Form 1650 and DD Form 250 or WAWF-RR documents.

SECTION E - CAD/PAD ENERGETIC MATERIALS REQUIREMENTS

1. The age of the energetic materials and components (i.e. ALL explosives, propellants, pyrotechnics, cartridges, and/or initiators) used in the manufacture of these items or sub-components shall not exceed twenty-four (24) months based on the original manufacturing date or retest date; unless otherwise noted in the detail specification of the item being procured. Propellant manufactured shall be in accordance with the required specifications of paragraph one, section E - CAD/PAD Inspection and Acceptance (Apr 2017). Any government furnished property provided in conjunction with the contract is considered acceptable for meeting the requirement. All energetic materials and components must be traceable to the original DoD qualified manufacturer and compliant with the ITAR part 120 and 121 (http://www.pmdc.state.gov/regulations_laws/itar.html).
2. Raw (non-blended) ingredients & materials used in blended/mixed energetic materials such as, but not limited to: fuels, oxidizers, binders, curatives, sensitizers, plasticizers, stabilizers etc., shall not exceed twelve (12) months since date of manufacture or retest date and comply with original manufacture's specification or military standard. This requirement must be met prior to loading of any of the energetic materials into the item or sub-components.
3. The Government may waive the energetic and constituent material requirements listed above or portions thereof, on a case-by-case basis (when acceptable to the Government) provided the Contractor furnishes all details of the reason for the waiver and the age, lot numbers, traceability, and other pertinent information/ test data and Certificate of Analysis/ Conformance (COA/COC) of the subject materials or components. Waivers shall be requested in only one of the following formats:

- a. Request for Variance: RFVs shall be submitted in accordance with Section C. The RFV may be subject to, but not limited to, conditions such as sensitivity testing, stabilizer analysis and/or dehumidification at Contractor's cost. RFVs may be submitted with a recertification plan (if available). The recertification plan will be kept on record once approved by the cognizant engineering activity.
- b. Energetics Test Matrix: The contractor may request waiver of the energetic and constituent material requirements as long as the Cognizant Engineering Organization (CEO), which is NSWC IHD, has an approved Energetic Test Matrix available for incorporation into Section C at time of award. The following information shall be furnished by the Contractor when submitting the waiver from the energetic and constituent material requirements based on an approved test matrix:

Date of approval _____

Document Number _____

Revision: _____

4. The Contractor shall deliver the results of energetic material analyses/test results for the item being procured, delivery in accordance with Contract Data Requirement List (CDRL) DD Form 1423, sequence number **A008**. The Contractor shall have the test equipment and/or capabilities necessary to assure that all energetic materials meet the respective specification requirements. Subcontracting the testing is acceptable. The energetic materials analysis shall contain all of the information listed below, which is specific to the energetic material that is used in the item being procured under the contract. Each test result must identify the proper units of measure.

- a. Composite Propellants: Are propellants that incorporate the use of an oxidizer and a binding material (examples are HTPB, CTPB, etc.) with other ingredients, which are used to modify the particular formulation to achieve a desired set of performance requirements. The following must be included in the report for composite propellants. The test methods below shall be used unless an alternate method is required by the detail specifications associated with the item being procured.

- (1) Propellant Moisture content shall be tested in accordance with ASTM E203. Alternative tests such as methods 101.5 or 101.6.1 from the latest revision of MIL-STD-286 can be used.
- (2) Density shall be tested in accordance with method 510.3 of the latest revision of MIL-STD-286.
- (3) Heat of Explosion (HOE) shall be tested in accordance with method 802.1 of the latest revision of MIL-STD-286.
- (4) Shore "A" Hardness shall be tested in accordance with section 5.4.20 of the latest revision of MIL-STD-2100.
- (5) Uniaxial mechanical properties shall be tested at minimum of three temperatures between -80F to +225F. Samples and testing shall be performed in accordance with CPIA Publication No. 21, Class C specimen that shall be tested at a crosshead speed of 2 in /min unless otherwise stated in the contract. A minimum of five samples per temperature is required for testing. The analysis shall include values for maximum stress, stress at rupture, elongation at rupture, elongation at maximum stress, and initial (tangential) modulus at each temperature. Copies of the stress versus strain curves shall be provided as part of the required data.
- (6) Propellant/liner/cast bonding shall be tested in accordance with CPIA Publication No. 21, using Conical Bond In Tension (C-BIT) samples for a minimum of three tested temperatures between -80F to +225F. A minimum of 4 samples shall be tested at each temperature. C-BIT testing is only required when first article testing is invoked on the propellant.
- (7) Strand burn rate testing shall be performed at a minimum of three temperatures between -80F to +225F. Burn rates shall be recorded for a minimum of four pressures within the operational pressure range of 500 to 12,000 psi. A minimum of 3 samples shall be tested at each temperature and pressure.
- (8) The Contractor shall submit chemical composition and ingredients records. At a minimum, the record shall consist of the ingredient weights and ingredient lot/batch number for each batch of propellant.

- b. Single/Double/Triple Based propellant: Are propellants that incorporate the use of nitrocellulose and a combination of nitroglycerin and/or nitroguanidine along with a stabilizer and other ingredients that are used to modify the formulation to achieve a particular performance

requirement. The following must be included in the report for single/double/triple based propellants. The test methods mentioned below shall be used unless an alternate method is required by the detail specifications associated with the item being procured.

- (1) Propellant Moisture/Volatiles content shall be tested in accordance with one of the following methods 103.5.2, 101.1.2, 101.2.2 of the latest revision of MIL-STD-286.
- (2) Density shall be tested in accordance with method 510.3 of the latest revision of MIL-STD-286.
- (3) Heat of Explosion (HOE) shall be tested in accordance with method 802.1 of the latest revision of MIL-STD-286.
- (4) Shore "A" Hardness shall be tested in accordance with section 5.4.20 of the latest revision of MIL-STD-2100.
- (5) Uniaxial mechanical properties shall be tested at minimum of three temperatures between -80F to +225F. Samples and testing shall be performed in accordance with CPIA Publication No. 21, Class C specimen that shall be tested at a crosshead speed of 2 in /min unless otherwise stated in the contract. A minimum of five samples per temperature is required for testing. The analysis shall include values for maximum stress, stress at rupture, elongation at rupture, elongation at maximum stress, and initial (tangential) modulus at each temperature. Copies of the stress versus strain curves shall be provided as part of the required data. Alternative methods for obtain the mechanical properties of the material can be used as long as the test methods will provide the results required as listed above.
- (6) Stability: The Contractor shall provide baseline stabilizer content test data indicating the percent weight of virgin stabilizer (example 2-NDPA wt. %) and any daughter products (examples 2.4'-DNDPA, 2.2' DNDPA, 2.4-DNDPA wt. %) that may exist for each propellant batch at the time of production for the CAD or PAD end item.
- (7) Strand burn rate testing shall be performed at a minimum of three temperatures between -80F to +225F. Burn rates shall be recorded for a minimum of four pressures within the operational pressure range of 500 to 12,000 psi. A minimum of 3 samples shall be tested at each temperature and pressure.
- (8) Relative Quickness/Force/Vivacity shall be tested in accordance with one of the following test methods 801.1.2 or 804.1 of latest revision of MIL-STD-286.
- (9) The Contractor shall submit chemical composition and ingredients records. At a minimum, the record shall consist of the ingredient weights and ingredient lot/batch number for each batch of propellant.

c. Other energetic materials: Are energetic materials that do not fall into the categories mentioned in sections 2.1 through 2.4. Examples of the materials are Boron Potassium Perchlorate (BKNO3), Black (Gun) Powder, and Zirconium Potassium Perchlorate or other ignition materials. The test methods mentioned below shall be used unless an alternate method is required by the detail specifications associated with the item being procured.

- (1) Moisture/Volatiles content shall be tested in accordance with one of the following methods 103.5.2, 101.1.2, 101.2.2 of the latest revision of MIL-STD-286.
- (2) Heat of Explosion (HOE) shall be tested in accordance with method 802.1 of the latest revision of MIL-STD-286.
- (3) Burn Rate shall be tested in accordance with method 801.1 of the latest revision of MIL-STD-286.
- (4) Density shall be tested in accordance with method 510.3 of the latest revision of MIL-STD-286.
- (5) Crush strength shall be tested in accordance with section 4.6.3 from the latest revision of MIL-P-46994

SECTION E - AMMUNITION LOT NUMBERING: MIL-STD-1168

Ammunition lot numbering shall be in accordance with MIL-STD-1168 except as specified below (and MIL-DTL-85097 for Propellant Actuated Devices).

*Lot number formulation shall consist of the following:

- a. The Contractor symbol: Only approved symbol is to be used. Requests for approval of marking symbol are to be submitted via the Government Inspector. Refer to MIL-HDBK-1461 for guidance, which is available on the WARP Website.
- b. The year and the alpha code designating the year and month of manufacture of the oldest batch of propellant in the lot (PADs only).
- c. The assigned lot interfix number (provided by NSWC IHD at time of award).
- d. The sequence number shall be consecutive for each production lot manufactured and shall be consecutive across contracts (sequence number shall not be repeated or reset).
- e. Serialization of sub-assembly or end item under this contract shall meet the requirements of MIL-STD-1168. Serial numbers Shall Not be repeated on the same part numbered item regardless of changes in lot numbers.

NOTE: Serial numbers (S/N's) are not part of the lot number. S/N's shall be assigned separately and in sequence.

(Example. Lot ABC97J009G001, S/N's 001-018)

Ammunition Lot number designation Sample:

IHM	93	D	002	-007
a	b	c	d	e

KEY:	
a	Manufacturer's Identification Code
b	The year in which final assembly for end item of the representative lot begins (CADs only) or the year of manufacture of the oldest batch of propellant in the lot (PADs only).
c	The month in which final assembly for end item of the representative lot begins (CADs only) or the month of manufacture of the oldest batch of propellant in the lot expressed as an alpha code (PADs only) in accordance with 4.1.3 of MIL-STD-1168.
d	Lot interfix number - lot number (provided and controlled by NSWC IHD AMS).
e	Lot sequence number - lot number (manufacturer responsible for the assignment of lot sequence numbers).

SECTION E - AMMUNITION DATA CARDS AND MATERIAL INSPECTION AND RECEIVING REPORT

1. Under the direction of MIL-STD-1168, the Contractor shall furnish Ammunition Data Cards (ADC) for each shipment (test and production) as generated using the Worldwide Ammunition- data Repository Program (WARP). Preparation instructions are found in DI-MISC-80043B and on the WARP website in the WARP User's Manual. Additional guidance for completion of ADC can be found at the Attachment "*Ammunition Data Card Master Revision 16"* and "*ADC SOW Rev Basic dated Jan 2018*". This attachment is incorporated by reference with the same force and effect as if contained herein. All components and subassemblies shall be listed on the ADC per DI-MISC-80043B, paragraph 3, in accordance with DD 1423 sequence number **A009**. A printed copy of the accepted (AC status) ADC from WARP shall be included with each Shipment. The ADC data elements listed below are part of section B of this contract.

National Stock Number and (DoD) Code: (see Section "B" for applicable CLIN)

Item Nomenclature: (see Section "B" for applicable CLIN)

Item Assembly Drawing Number: (see Section "B" for applicable CLIN)

NOTE: The WARP system for Ammo Data Cards requires Contractors to hold a certificate to access the system and communicate with the secure DoD server.

The site to obtain ECA Access Certificate is: <http://www.identrust.com/warp/index.html>

The WARP login website is: <https://mhpwarp.redstone.army.mil>

2. Lot numbers for all explosive components and explosive subassemblies shall be in accordance with MIL-STD-1168 (Ammunition Lot Numbering and Ammunition Data Card), and shall be included in the components section of the Ammunition Data Card.

3. In accordance with the DFARS clause at 252.232-7003, Material Inspection and Receiving Report, the Contractor shall complete a Wide Area Workflow Receiving Report (WAWF-RR) at the time of each delivery (Lot Acceptance or First Article test samples and production lot). Preparation instructions are found in the DFAR Supplement Appendix F.

If the date cited in WAWF-RR is an estimated "ship date", the Contractor shall make distribution of a corrected WAWF-RR indicating the "actual ship date" within 24 hours after actual shipment. The following additional data shall be furnished on the WAWF-RR:

- a. Complete lot number, lot expiration date (month and year)
- b. Total lot size (consists of net, test, and investigative).
- c. Serial numbers of units shipped to consignee.
- d. Net quantity shipped to destination.

- 1. Item quantity shipped to consignee
- 2. Total item quantity shipped to consignee
- 3. Item quantity due consignee

4. The Contractor shall make distribution of the ADC and WAWF-RR in accordance with the information provided in Section H no later than 24 hours after shipment. When Item 0001, 0002, etc. is indicated under the designator, the Contractor shall furnish all shipping documents for all SUBCLINs under that line item.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-2	Inspection of Supplies-Fixed-Price.	Aug 1996		
52.246-16	Responsibility for Supplies.	Apr 1984		

FAR Clauses Incorporated by Full Text

52.246-11 Higher-Level Contract Quality Requirement. (Dec 2014)

Higher-Level Contract Quality Requirement (Dec 2014)

(a) The Contractor shall comply with the higher-level quality standard(s) listed below.

ISO - 9001:2015

(b) The Contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts, in-

(1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or

(2) When the technical requirements of a subcontract require-

(i) Control of such things as design, work operations, in-process control, testing, and inspection; or

(ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.

(End of clause)

Section F - Deliveries or Performance

SECTION F - DELIVERIES OR PERFORMANCE

Unless otherwise indicated in this contract, accelerated delivery is desirable and acceptable at no additional cost to the Government. The addresses for the activities designated to receive supplies are listed below:

NOTE: The Mark For information is to be noted on the WAWF-RR for each applicable subline item.

CAD/PAD ADDITIONAL NOTES:

- a. A WAWF-RR shall be furnished for each lot of test samples shipped.
- b. The following data shall be furnished on the WAWF-RR shipping document.
 1. Lot Number
 2. Lot Size Total (consists of net, test and investigative)
 3. Net quantity shipped to consignee
 - a. Item quantity shipped to consignee
 - b. Total item quantity shipped to consignee
 - c. Item quantity due consignee
 - d. GBL and method of shipment
 4. Test units lot size represented by number of test units forwarded for test. (Total test units equals test samples plus investigative or retained samples.)
 5. The WAWF-RR shall be marked as applicable, i.e., "First Article Test Sample," "Lot Acceptance Test Sample," "Production M /F Stock and Issue" and/or other mark for (M/F) instructions contained in this section.

SECTION F - SHIPPING INFORMATION FOR ALL SUBCLINS

Contractor shall provide the following shipping information listed below for all SubCLINs listed in Section B, no later than 3 days from the actual ship date.

Shipping Information can be provided in Contractor's preferred format to the NAVSUP Contracting POC and AMS POC listed in Section H:

Shipping Company

Tracking Number

Contract Number

SubCLIN

Actual Ship Date

Lot Number

DODIC

Quantity Shipped

WAWF DD250 Number

If available provide: FMS Case Number, GBL Number, Airway Bill

SECTION F - SHIP IN PLACE

1. "SHIP IN PLACE" is authorized for FMS items ONLY, upon notification of successfully passed Lot Acceptance Testing and proof that the contractor has applied for GBLs. When shipping instructions are unavailable at the time the units are accepted by the Government, the contractor shall

be authorized to ship in place, and upon submission of proper invoice/DD250/WAWF-RR, receive final payment for items shipped. The contractor agrees to store and safeguard the units in bonded storage at no extra cost to the government, while waiting for shipping instructions from the cognizant country representative /freight forwarder. The requirements for "Evidence of Shipment" shall be postponed until receipt of shipping instructions.

2. Shipment shall be made promptly upon receipt of shipping instructions. The shipment shall be moved on DD Form 1149 Requisition and Invoice /Shipping Documents and shall be issued and distributed per the contract showing the actual ship date, GBL#, and correct "ship to" and "mark for".
3. DD1149's shall be provided to the Administrative Points of Contact in Section H within 10 days after shipment.

SECTION F - REPORT OF SHIPMENT

The Contractor shall provide an advanced Report of Shipment (REPSHIP) per clause 52.247-68 to the AMS listed in Section H no later than 24 hours prior to the shipment arrival, and for ammunition shipments no later than two hours after shipment departure. Failure to provide a REPSHIP can result in shipments being denied at point of disembarkation and returned to the point of embarkation for reshipment at the contractor's expense. A REPSHIP can be in the contractor's format but shall include at a minimum all the following data:

Contractor shall contact their nearest Defense Contract Management Agency (DCMA) Office for transportation guidance and assistance for all Foreign Military Sales (FMS) deliveries prior to shipment; and ensure that the DCMA provides one information copy of completed Notice of Availability (NOA) including FMS case and requisition numbers by email or mail to:

NAVAIR FMS email: Fms_noa_r.fct@navy.mil (Navy FMS SubCLINs are: 0001AJ) and the point of contact email for E21 listed under SECTION H - ADMINISTRATIVE POINTS OF CONTACT, number 2.

REPSHIP Data Requirements for Individual Shipments of Hazardous Material (HAZMAT) and Inert Component Parts - Continental United States (CONUS) to CONUS, CONUS to Overseas or From All Overseas Locations

FROM: Shipping Activity

To: IHD AMS (*See Section H*)

SUBJ: Report of Shipment (REPSHIP)

- 1) Shipment Date written as a three-digit day of the year (Julian)
- 2) Estimated Time of Arrival (ETA) written as a three-digit day of the year (Julian) (Observe Standard Transit Time (STT), if CONUS Truck Shipment and no Required Delivery Date (RDD) identified.
- 3) Required Delivery Date (RDD) or Delivery Date (DD), if specified.
- 4) Carrier.
- 5) Bill of Lading (BL) Number (Notes 1, 2, 3, 4)
- 6) Military Traffic Expediting-Greater Security (MTX-GS) Service Number (Notes 1, 2, 3)
- 7) Air Release Number (Notes 1, 2, 3) or for Surface Shipments, Export Traffic Release (ETR) Number and Vessel Name and/or Voyage Document Number
- 8) Shipment (Cargo) Name (Example: Bombs)
- 9) Container and Seal Number (if applicable):
 - a) Container Transportation Control Number (TCN)
 - b) Total Weight of Contents
 - c) Rounds, Pieces, Weight, Cube, Condition Code, and Lot Numbers (Note 4)
- 10) Security Risk Category (SRC), (E.g., Security Risk Category I, II, III, IV, Unclassified, Confidential, Secret, None)
- 11) Controlled Item Inventory Code (CIIC)
- 12) Total Net Explosive Weight (NEW)
- 13) Hazard Classifications
- 14) Department of Defense Identification Code/Navy Ammunition Logistic Code (DODIC/NALC). (Note 4).

15) Name, address, and phone number of person responsible for information contained in REPSHIP

NOTES:

1. When the conveyance contains more than one shipment unit, repeat the data elements in separately lettered paragraphs for each shipment unit.
2. Cargo for more than one vessel or flight, but shipped to Port of Embarkation (POE) in a single conveyance, is included in a single REPSHIP. When cargo for a single vessel is moved to the Seaport of Embarkation (SPOE) in more than one conveyance, repeat all the data elements as above in separate numbered paragraphs for each conveyance or REPSHIP.
3. A separate REPSHIP is used for each mode of shipment to the POE.
4. Lot number, DODIC and NALC are not mandatory fields. If available, they may be provided in the electronic RESHIP or in the template above. If a CBL is used, the lot number and ammunition condition code should be included in the remarks section. Weapons must be identified on the CBL by each serial number contained within the shipment.
5. DODIC and NALC are codes used specifically for logistic administration and control of ammunition.

SECTION F - FOREIGN MILITARY SALES (FMS) SHIPMENTS, NOTICE OF AVAILABILITY

The Cognizant DCMA Transportation Office shall forward copies of the Notice of Availability for all FMS shipments to the activities listed below:

FMS SubCLINs	Fax and Email Distribution
0001AJ	NAVY FMS NAVAIR FMS email: Fms_noa_r.fct@navy.mil and the point of contact email for E21 listed under SECTION H - ADMINISTRATIVE POINTS OF CONTACT, number 2.

Section F: Time of Delivery

The Government desires delivery to be made according to the following desired delivery schedule. If the offeror is unable to meet the desired delivery schedule, it may, without prejudicing evaluation of its offer, propose a delivery schedule below. However, the offeror's proposed delivery schedule must not extend the delivery period beyond the time for delivery in the Government's required delivery schedule.

The Government reserves the right to award under either the required delivery schedule or the proposed delivery schedule. If the offeror proposes no other delivery schedule, the required delivery schedule will apply.

Delivery Schedule (With FAT - Gov Testing)				
Item	Quantity	Desired Delivery Schedule	Required Delivery Schedule	Proposed Delivery Schedule
A001 (Obsolescence Alert Notice)	1 Set	A/R	A/R	
A003 (Project Planning Chart)	1 Set	120, 240, 360, 480 DADC	120, 240, 360, 480 DADC	
A002 (DMSMS Health Assessment Report)	1 Set	150 DADC	150 DADC	
A005 (Radiographic Test Technique RTT)	1 Set	255 DADC	375 DADC	
A004 (FAT/LAT Failure Report)	A/R	A/R	A/R	
FAT				
A006 (Radiographic Report and Film)	1 Set	280 DADC	400 DADC	
A007 (Configuration Marriage Record)	1 Set	280 DADC	400 DADC	
A008 (Energetic Materials Analysis)	1 Set	280 DADC	400 DADC	
A009 (Ammo Data Card, Provisional)	1 Set	280 DADC	400 DADC	
0001AB (FAT)	20 EA	300 DADC	420 DADC	
0001AC (FAT Investigative Unit)	1 EA	300 DADC	420 DADC	
0001AD (FAT, C-BIT)	5 EA	300 DADC	420 DADC	
0001AE (FAT, Grain)	2 EA	300 DADC	420 DADC	
0001AF (FAT, Blocks)	4 EA	300 DADC	420 DADC	
Lot 1				
A006 (Radiographic Report and Film)	1 Set	580 DADC	700 DADC	
A007 (Configuration Marriage Record)	1 Set	580 DADC	700 DADC	
A009 (Ammo Data Card, Provisional)	1 Set	580 DADC	700 DADC	
0001AG (LAT)	20 EA	600 DADC	720 DADC	
0001AH (Investigative Units)	1 EA	600 DADC	720 DADC	

0001AJ (Deliverable Units)	6 EA	675 DADC	795 DADC	
0001AK (Deliverable Units)	42 EA	675 DADC	795 DADC	
0001AL (Deliverable Units)	150 EA	675 DADC	795 DADC	
DADC = Days After Date of Contract				

Line Item	Delivery Schedule	Quantity	Address and POC	Special Handling/Notes
0001AA	Delivery Schedule From date of lead time event to delivery 795 Calendar Days Date of Award	1 Set	Ship To DoDAAC: N00174 CountryCode: USA NSWC INDIAN HEAD DIVISION NAVAL SURFACE WARFARE CENTER, 4522 MCMAHON ROAD INDIAN HEAD, MD 20640-1525 UNITED STATES Katherine Lusk, Acquisition Management Specialist Email: katherine.a.lusk.civ@us.navy.mil Telephone: 301-744-2223	FoB Details Contractor Destination
0001AB	Delivery Schedule From date of lead time event to delivery 420 Calendar Days Date of Award	20 Each	Ship To DoDAAC: N00174 CountryCode: USA NSWC INDIAN HEAD DIVISION NAVAL SURFACE WARFARE CENTER, 4522 MCMAHON ROAD INDIAN HEAD, MD 20640-1525 UNITED STATES Lisa Aliff, POC Email: lisa.a.aliff.civ@us.navy.mil Telephone: (301) 744-1506	FoB Details Contractor Destination
	Additional Descriptive Data: Mark For: Explosive Scales (BLDG 1103/1104) ATTN: Large Motor Test, Code R36 Condition Code: D Ownership Code: 3 LAC: 5N			
	Delivery Schedule From date of lead time event to delivery 420 Calendar Days Date of Award	1 Each	Ship To DoDAAC: N00174 CountryCode: USA NSWC INDIAN HEAD DIVISION NAVAL SURFACE WARFARE CENTER, 4522 MCMAHON ROAD INDIAN HEAD, MD 20640-1525 UNITED STATES Lisa Aliff, POC Email: lisa.a.aliff.civ@us.navy.mil	FoB Details Contractor Destination

0001AC			Telephone: (301) 744-1506	
0001AD	Additional Descriptive Data: Mark For: Explosive Scales (BLDG 1103/1104) ATTN: Large Motor Test, Code R36 Condition Code: D Ownership Code: 3 LAC: 5N			
0001AE	Additional Descriptive Data:			
	Delivery Schedule From date of lead time event to delivery 420 Calendar Days Date of Award	5 Each	Ship To DoDAAC: N00174 CountryCode: USA NSWC INDIAN HEAD DIVISION NAVAL SURFACE WARFARE CENTER, 4522 MCMAHON ROAD INDIAN HEAD, MD 20640-1525 UNITED STATES Lisa Aliff, POC Email: lisa.a.aliff.civ@us.navy.mil Telephone: (301) 744-1506	FoB Details Contractor Destination

	Mark For: Explosive Scales (BLDG 1103/1104) ATTN: Large Motor Test, Code R36 Condition Code: D Ownership Code: 3 LAC: 5N			
0001AF	Delivery Schedule From date of lead time event to delivery 420 Calendar Days Date of Award	4 Each	Ship To DoDAAC: N00174 CountryCode: USA NSWC INDIAN HEAD DIVISION NAVAL SURFACE WARFARE CENTER, 4522 MCMAHON ROAD INDIAN HEAD, MD 20640-1525 UNITED STATES Lisa Aliff, POC Email: lisa.a.aliff.civ@us.navy.mil Telephone: (301) 744-1506	FoB Details Contractor Destination
	Additional Descriptive Data: Mark For: Explosive Scales (BLDG 1103/1104) ATTN: Large Motor Test, Code R36 Condition Code: D Ownership Code: 3 LAC: 5N			
0001AG	Delivery Schedule From date of lead time event to delivery 720 Calendar Days Date of Award	20 Each	Ship To DoDAAC: N00174 CountryCode: USA NSWC INDIAN HEAD DIVISION NAVAL SURFACE WARFARE CENTER, 4522 MCMAHON ROAD INDIAN HEAD, MD 20640-1525 UNITED STATES Katherine Lusk, Acquisition Management Specialist Email: katherine.a.lusk.civ@us.navy.mil Telephone: 301-744-2223	FoB Details Contractor Destination
	Additional Descriptive Data: Mark For: Explosive Scales (BLDG 1103/1104) RETAIN SAMPLES			

	ATTN: Daniel Bachman, 301-744-1617 Condition Code: D Ownership Code: 3 LAC: 5N			
0001AH	Delivery Schedule From date of lead time event to delivery 720 Calendar Days Date of Award	1 Each	Ship To DoDAAC: N00174 CountryCode: USA NSWC INDIAN HEAD DIVISION NAVAL SURFACE WARFARE CENTER, 4522 MCMAHON ROAD INDIAN HEAD, MD 20640-1525 UNITED STATES Daniel Bachman, POC Email: daniel.m.bachman.civ@us.navy.mil Telephone: 301-744-1617	FoB Details Contractor Destination
	Additional Descriptive Data: Mark For: Explosive Scales (BLDG 1103/1104) RETAIN SAMPLES ATTN: Daniel Bachman, 301-744-1617 Condition Code: D Ownership Code: 3 LAC: 5N			
0001AJ	Delivery Schedule From date of lead time event to delivery 795 Calendar Days Date of Award	6 Each	Ship To MAPAC: DFI004 CountryCode: USA BLUE WATER SHIPPING US INC ATTN FDFLOGCOM, 14802 NW 107TH AVE SUITE 1 HIALEAH GARDENS, FL 33018 UNITED STATES Katherine Lusk, Acquisition Management Specialist Email: katherine.a.lusk.civ@us.navy.mil Telephone: 301-744-2223	FoB Details Government Origin (Shipping Point)
	Additional Descriptive Data: NOA REQUIRED: USE EX # EX2013040415 Priority: 06			

	Mark for: FMS Case: FI-P-PAH TAC: M MAPAC: DFIA00 Requisition: PFIA55-2305-6020			
0001AK	Delivery Schedule From date of lead time event to delivery 795 Calendar Days Date of Award	42 Each	Ship To MAPAC: DKUA00 CountryCode: KWT KUWAIT MINISTRY OF DEFENSE KUWAIT AIR FORCE, ATTN CHIEF R D RECEIVE DISPATCH SAFAT KUWAIT Katherine Lusk, Acquisition Management Specialist Email: katherine.a.lusk.civ@us.navy.mil Telephone: 301-744-2223	FoB Details Government Origin (Shipping Point)
	Additional Descriptive Data: Mark for: FMS Case: KU-P-PAH MAPAC: DKUA00 TAC: M Requisition: PKUA95-5143-6040			
0001AL	Delivery Schedule From date of lead time event to delivery 795 Calendar Days Date of Award	150 Each	Ship To DoDAAC: N00174 CountryCode: USA NSWC INDIAN HEAD DIVISION NAVAL SURFACE WARFARE CENTER, 4522 MCMAHON ROAD INDIAN HEAD, MD 20640-1525 UNITED STATES Katherine Lusk, Acquisition Management Specialist Email: katherine.a.lusk.civ@us.navy.mil Telephone: 301-744-2223	FoB Details Government Origin (Shipping Point)
	Additional Descriptive Data: Mark For: Explosive Scales (BLDG 1103/1104) Navy Stock and Issue, COG 2E PANMC FY26 (F/A-18) Condition Code: A Ownership Code: 5			

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-15	Stop-Work Order.	Aug 1989		
52.242-17	Government Delay of Work.	Apr 1984		
52.247-29	F.o.b. Origin.	Feb 2006		
52.247-30	F.o.b. Origin, Contractor's Facility.	Feb 2006		
52.247-34	F.o.b. Destination.	Jan 1991		
52.247-52	Clearance and Documentation Requirements-Shipments to DoD Air or Water Terminal Transshipment Points.	Feb 2006		

DFARS Clauses Incorporated by Full Text

252.223-7003 Change in Place of Performance--Ammunition and Explosives. (Dec 1991)

CHANGE IN PLACE OF PERFORMANCE--AMMUNITION AND EXPLOSIVES (DEC 1991)

(a) The Offeror shall identify, in the "Place of Performance" provision of this solicitation, the place of performance of all ammunition and explosives work covered by the Safety Precautions for Ammunition and Explosives clause of this solicitation. Failure to furnish this information with the offer may result in rejection of the offer.

(b) The Offeror agrees not to change the place of performance of any portion of the offer covered by the Safety Precautions for Ammunition and Explosives clause contained in this solicitation after the date set for receipt of offers without the written approval of the Contracting Officer. The Contracting Officer shall grant approval only if there is enough time for the Government to perform the necessary safety reviews on the new proposed place of performance.

(c) If a contract results from this offer, the Contractor agrees not to change any place of performance previously cited without the advance written approval of the Contracting Officer.

(End of clause)

Section G - Contract Administration Data

SECTION G - ACCOUNTING DATA

Payment Instructions (Per PGI 204.7108 - For Government Use Only)

https://www.acq.osd.mil/dpap/dars/pgi/pgi_htm/current/PGI204_71.htm#payment_instructions

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7002	Payment for Contract Line or Subline Items Not Separately Priced.	Apr 2020		
252.231-7000	Supplemental Cost Principles	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Combo unless Contractor's business systems do not allow. In that event an "invoice" (stand-alone) and "receiving report" (stand-alone) may be used.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

See Section E Inspection and Acceptance

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>SEE BLOCK 12 OF AWARD</u>
Issue By DoDAAC	<u>SEE BLOCK 5 OF AWARD</u>
Admin DoDAAC	<u>SEE BLOCK 6 OF AWARD</u>
Inspect By DoDAAC	<u>SEE BLOCK 6 OF AWARD</u>
Ship To Code	<u>SEE SECTION F OF AWARD</u>
Ship From Code	<u>SEE SECTION F OF AWARD</u>
Mark For Code	<u>SEE SECTION F OF AWARD</u>
Service Approver (DoDAAC)	<u>SEE BLOCK 6 OF AWARD</u>
Service Acceptor (DoDAAC)	<u>SEE BLOCK 6 OF AWARD</u>
Accept at Other DoDAAC	<u>SEE BLOCK 6 OF AWARD</u>

LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

navsupwawf.wss.fct@navy.mil

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

SECTION H - ADMINISTRATIVE POINTS OF CONTACT

1) Inquiries and correspondence directed to the Administrative Point of Contact at NAVSUP should be addressed as follows:

Name: TBD at time of award

Code: N772.#

Phone: ###-###-####

Email: first.last.civ@us.navy.mil

2) Inquiries and correspondence directed to the Acquisition Management Specialist (AMS) should be addressed as follows:

Name: Katherine Lusk

Code: E21KL

Phone: 301-744-2223

Email: katherine.a.lusk.civ@us.navy.mil

3) If the inquiry involves technical questions, (drawing, specifications, etc.) inquiry should be submitted in accordance with the procurement specification. All telephone inquiries pertaining to technical questions must be confirmed in writing with the above AMS and PCO within 48 hours.

SECTION H - SPECIAL DISTRIBUTION

NOTE 1: Use of the Wide Area Work Flow Receipt and Acceptance (WAWF-RR) electronic form is required. See clause 252.232-7003 Electronic Submission of Payment Requests and Receiving Reports.

NOTE 2: When using WAWF-RR to submit Contract Data Requirements List (CDRL) data and "Not Separately Priced" items, the following information shall be listed in the "Comments" field of the WAWF electronic form: Shipping company, shipment tracking number, and date shipped.

WAWF-RR documents accompanying the shipment are to be attached as follows (Type of Shipment - Location):

Carload or truckload - Affix to the shipment where it will be readily visible and available upon request.

Less than carload or truckload - Affix to container number one or container bearing lowest number.

Mail, including parcel post - Attach to outside or include in the package. Include a copy in each additional package of multi-package shipments.

SECTION H - SPECIAL DISTRIBUTION

KEY:

* = Hard Copy

** = Provisional for LATs Only

S = Include all other shipping Documents

ADC	WAWF	GBL	Designator / CLIN	Designee and E-Mail Address
1*	1		0001	Consignee
1*	1	S	0001	Contract Administration Office (DCMA)
1*	1	S	0001	Government Quality Assurance Representative

1*	1	S	0001	Transportation Office Issuing GBL (Attach to GBL Memorandum Copy)
1*	1	S	0001	(NO EXPLOSIVES TO BE SENT TO THIS ADDRESS) NSWC IHD CAD/PAD Department BLDG 1557 4393 Benson Road
1*			0001	Indian Head MD 20640-5092 Code: AMS per Section H Code: E26 NSWC_IHEODTD_DMO@NAVY.MIL
	1		0001	COMMANDER NAVSUP Weapon Systems Support 5450 Carlisle Pike BLDG 410 PO BOX 2020 Mechanicsburg PA 17055-0788 ATTN: Contracting Officer per Section H
1*	1		0001	COMMANDER US Army Munitions & Armaments Command Rock Island IL 61299-6000
			0001	ATTN: AMSOS-PBQ anne-marie.d.gephart.civ@army.mil ATTN: AMSJM-CDR-H jessica.d.lovell.civ@army.mil christopher.m.gomez32.civ@army.mil
	1		0001AL	COMMANDER NAVSUP Logistics Operations Center 5450 Carlisle Pike PO Box 2011 Mechanicsburg PA 17055-7035 ATTN: Code N413.12C Lewis.c.ledford2.civ@us.navy.mil

SECTION H - MAINTENANCE OF DATA

The Contractor SHALL maintain all Lot related Data, for a period of twenty (20) years, unless disposal is approved in writing by NSWC IHD, AMS.

SECTION H - GOVERNMENT FURNISHED PROPERTY

1. The Government will furnish the following property to the Contractor for use in performance of this contract:
2. Attachment, Scheduled Government Furnished Property, shall be completed by the Contracting Officer and uploaded to Electronic Document Access (EDA) as an attachment to the contract. Additional information can be found at DFARS PGI (245.103 & 245.201-70).

PROPERTY	QUANTITY	EXPLOSIVE CLASS	SHIPPING WEIGHT
1377-01-108-1438 PVU-1A Ignition Device 851AS110 Manufacturer: NSWC IHEODTD	450	1.4S	0.05lbs

Delivery of such property will be made by NSWC IHD, INDIAN HEAD. GFP will be available for delivery no earlier than 90 days after requested.

3. The property will be delivered, at the Government's expense, at or near:

POC: _____

Address: _____

4. The Contractor shall notify the Contracting Officer, in writing, with a concurrent copy to the cognizant DCMA office and NSWC IHD AMS, per Section H, at least ninety (90) days prior to the need for the Government Furnished Property (GFP).

The GFP request shall clearly indicate the following information:

- a. Contract Number
- b. End Item Nomenclature and DODIC
- c. Quantity of GFP required
- d. Complete address to which GFP is to be delivered
- e. Date GFP is required

5. Only the property listed above, in the quantity shown, will be furnished by the Government. The total quantity of GFP provided will include First Article/Preproduction Testing, if required, lot acceptance, and normal attrition.

6. The Government reserves the right to initially forward only the appropriate amount of GFP applicable to the First Article quantity (as described in Section B Supplies/Services) within 90 days of the Contractor's request. The GFP applicable to the Production units and the Lot Acceptance Test Samples (as described in Section B Supplies/Services) will be forwarded within 60 days after the approval of the First Article Test requirement and subsequent release to production by the Contracting Officer, per program plan of section H of this contract.

7. The Contractor shall perform inspection of GFP within five (5) days after receipt at their facility.

8. The Contractor shall notify the Contracting Officer, in writing, within thirty (30) days after receipt of GFP, if GFP is determined to be lost, damaged, destroyed, no longer usable, or no longer needed for the performance of the contract.

9. If the Contractor determines that additional GFP is needed prior to contract award or during contract performance, the Contractor shall submit a written request to the Contracting Officer. In order for the request to be considered, the Contractor must provide justification for the need for additional GFP. If additional GFP is requested by the Contractor and issued by NSWC IHD during contract performance, the contract price will be reduced to compensate for the additional GFP.

10. All other property required for performance of this contract shall be furnished by the Contractor.

11. PERCUSSION PRIMERS/IGNITION DEVICES - The above cited percussion primers/ignition devices provided as GFP are from lot(s) found to be acceptable for intended application. It is the Contractor's responsibility to perform any processing, screening and/or testing (i.e., drying prior to use, radiographic screening for random defect, etc.) cited or referenced in the applicable drawings/specifications to assure product conformance. One-hundred percent (100%) radiographic inspection shall be performed on percussion primers/ignition devices prior to installation. Inspection shall be in accordance with ASTM E1742. The primers shall be arrayed on boards or trays in such a manner as to provide a side view of the internal components. The primers shall remain on the boards or trays until review of X-rays has been completed and all defects have been located and removed. The primers shall be free of the following defects when examined as specified : missing, incorrect, multiple, inverted, sideways, cocked, or deep seated anvil; loose, light, broken, or missing charge; gaps between anvil tip and charge; cup damage or distortion, primer crushed or mutilated; foreign material. The percussion primers/ignition devices shall not be used after the date specified on Condition Code Tag and shipping document 1348-1 (Block FF) without prior authorization from the Contracting Officer. Failure to comply with these conditions could cause rejection of the end-item.

12. *DISPOSITIONING* - The Contractor shall request disposition instructions from the Contracting Officer for any residual GFP. Any residual GFP must be in a container clearly marked with the NSN and lot number. It must also be free from any hazardous waste. Contents and marking shall be verified by the Government QAR.

Residual GFP shall be dispositioned within thirty (30) days after acceptance of the final production lot. Additionally, the Contractor shall notify the receiving activity, in writing, at least thirty (30) days prior to shipment. A detailed list of material being returned shall be provided. Failure to comply may result in rejection of the material at the destination. Any costs associated with return of unauthorized shipments shall be borne by the Contractor.

If the Contractor has the capability to dispose of the residual GFP at their facility, and has received permission to do so through approved disposition instructions, the Contractor shall provide a written notice to the issuing activity within thirty (30) days after the disposal. This notice shall identify the material which was disposed of by the contract number, NSN, lot number, quantity, and the date the material was disposed. Verification by the Government QAR is required and shall be cited on this notification.

Additional Regulation or Supplemental Clauses Incorporated by Full Text

WSSTERMHZ13 ACCIDENT REPORTING

(Nov 1992)

1. IAW DFARS Clause 252.2237002 the contractor shall immediately following an accident or incident notify the Commanding Officer, NAVSUP Weapon Systems Support Code N7, 5450 Carlisle Pike, PO Box 2020, Mechanicsburg, PA 170550788. Also, a written report shall be forwarded within 10 days of the accident containing at a minimum the following:

- a. Location, date and local time of the occurrence
- b. Category of accident (fire, explosion, natural disaster, etc.)
- c. Identification of equipment, material and type of activity involved.
- d. Contract number.
- e. Procuring activity (name of PCO and ACO).
- f. Narrative of occurrence including cause, if known.
- g. Personnel involved and degree of injury, if any. Specify whether contractor and/or government personnel.
- h. Assessment of damage. Estimate in dollars for contractor and/or government owned material, property, equipment.
- i. Was a news release made? If so, by whom? If not, will a news release be made?
- j. Was a request made for any assistance?
- k. Will there be any effect on production? If so, explain in detail.
- l. Corrective action taken, if any.
- m. Name and title of person submitting this report.

2. For the assigned DCMA, Contract Administration Office (CAO). The CAO shall immediately following an accident or incident notify the Procurement Contracting Officer (PCO) and then forward weekly written reports until the accident or incident no longer effects production and/or when contract deliveries are on schedule.

Section I - Contract Clauses

Additional FAR Clauses Incorporated by Full Text

52.209-4 First Article Approval-Government Testing. Alternate I (Jan 1997)

(a) The Contractor shall deliver see Section B unit(s) of Lot/Item see Section B within see Section F Time of Delivery calendar days from the date of this contract to the Government at NSWC IH MD per Section F for first article tests. The shipping documentation shall contain this contract number and the Lot/Item identification. The characteristics that the first article must meet and the testing requirements are specified elsewhere in this contract.

(b) Within 60 calendar days after the Government receives the first article, the Contracting Officer shall notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval shall state any further action required of the Contractor. A notice of disapproval shall cite reasons for the disapproval.

(c) If the first article is disapproved, the Contractor, upon Government request, shall submit an additional first article for testing. After each request, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall furnish any additional first article to the Government under the terms and conditions and within the time specified by the Government. The Government shall act on this first article within the time limit specified in paragraph (b) of this clause. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article on time, or the Contracting Officer disapproves any first article, the Contractor shall be deemed to have failed to make delivery within the meaning of the Default clause of this contract.

(e) Unless otherwise provided in the contract, the Contractor-

(1) May deliver the approved first article as a part of the contract quantity, provided it meets all contract requirements for acceptance and was not consumed or destroyed in testing; and

(2) Shall remove and dispose of any first article from the Government test facility at the Contractor's expense.

(f) If the Government does not act within the time specified in paragraph (b) or (c) of this clause, the Contracting Officer shall, upon timely written request from the Contractor, equitably adjust under the Changes clause of this contract the delivery or performance dates and/or the contract price, and any other contractual term affected by the delay.

(g) The Contractor is responsible for providing operating and maintenance instructions, spare parts support, and repair of the first article during any first article test.

(h) Before first article approval, the acquisition of materials or components for, or the commencement of production of, the balance of the contract quantity is at the sole risk of the Contractor. Before first article approval, the costs thereof shall not be allocable to this contract for (1) progress payments, or (2) termination settlements if the contract is terminated for the convenience of the Government.

(i) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the Offeror/Contractor and have been accepted by the Government. The Offeror/Contractor may request a waiver.

(j) The Contractor shall produce both the first article and the production quantity at the same facility.

(End of clause)

Note: In the event the First Article test sample fails to meet the requirements of the specification or drawing, the contractor may be required to submit a Failure Analysis and Corrective Action Report (DD Form 1423, sequence number, A004).

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		

52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Feb 2026		
52.204-13	System for Award Management-Maintenance.	Feb 2026		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.209-4	First Article Approval-Government Testing. (Alternate I)	Feb 2026	Alternate I	Jan 1997
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded.	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations.	Feb 2026		
52.211-5	Material Requirements.	Feb 2026		
52.211-15	Defense Priority and Allocation Requirements.	Apr 2008		
52.215-2	Audit and Records-Negotiation.	Feb 2026		
52.215-8	Order of Precedence-Uniform Contract Format.	Feb 2026		
52.215-14	Integrity of Unit Prices.	Nov 2021		
52.219-8	Utilization of Small Business Concerns.	Feb 2026		
52.219-9	Small Business Subcontracting Plan.	Feb 2026		
52.219-16	Liquidated Damages-Subcontracting Plan.	Feb 2026		
52.222-3	Convict Labor.	Feb 2026		
52.222-4	Contract Work Hours and Safety Standards-Overtime Compensation.	Feb 2026		
52.222-19	Child Labor-Cooperation with Authorities and Remedies.	Feb 2026		
52.222-20	Contracts for Materials, Supplies, Articles, and Equipment.	Feb 2026		
52.222-35	Equal Opportunity for Veterans.	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities.	Feb 2026		
52.222-37	Employment Reports on Veterans.	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act.	Dec 2010		
52.222-50	Combating Trafficking in Persons.	Feb 2026		
52.222-54	Employment Eligibility Verification.	Jan 2025		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-1	Authorization and Consent.	Jun 2020		
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-1	Payments.	Apr 1984		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.232-11	Extras.	Apr 1984		
52.232-17	Interest.	May 2014		
52.232-18	Availability of Funds.	Apr 1984		
52.232-23	Assignment of Claims.	May 2014		
52.232-25	Prompt Payment.	Jan 2017		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes. (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.233-3	Protest after Award.	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim.	Feb 2026		
52.240-91	Security Prohibitions and Exclusions.	Feb 2026		
52.240-93	Basic Safeguarding of Covered Contractor Information Systems.	Feb 2026		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.242-13	Bankruptcy.	Jul 1995		
52.243-1	Changes-Fixed Price.	Feb 2026		
52.244-5	Competition in Subcontracting.	Aug 2024		
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Feb 2026		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-23	Limitation of Liability.	Feb 1997		
52.246-26	Reporting Nonconforming Items.	Aug 2024		
52.247-68	Report of Shipment (REPSHIP).	Feb 2006		
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012		
52.249-8	Default (Fixed-Price Supply and Service).	Apr 1984		
52.253-1	Computer Generated Forms.	Jan 1991		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		

252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.219-7996	Small Business Subcontracting Plan (DoD Contracts). (DEVIATION 2026-O0037)	Feb 2026	Deviation 2026-O0037	Feb 2026
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7002	Qualifying Country Sources as Subcontractors.	Mar 2022		
252.225-7005	Identification of Expenditures in the United States .	Jun 2005		
252.225-7007	Prohibition on Acquisition of Certain Items from Communist Chinese Military Companies.	Dec 2018		
252.225-7009	Restriction on Acquisition of Certain Articles Containing Specialty Metals.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7016	Restriction on Acquisition of Ball and Roller Bearings.	Jan 2023		
252.225-7028	Exclusionary Policies and Practices of Foreign Governments.	Apr 2003		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.226-7003	Drug-Free Work Force.	Aug 2024		
252.227-7991	Rights in Bid or Proposal Information. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7996	Technical Data--Withholding of Payment. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7997	Validation of Asserted Restrictions. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.240-7997	NIST SP 800-171 DoD Assessment Requirements. (DEVIATION 2026-O0025)	Feb 2026	Deviation 2026-O0025	Feb 2026
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Jan 2026
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.246-7003	Notification of Potential Safety Issues.	Jan 2023		
252.246-7998	Warranty of Data. ALTERNATE II (DEVIATION 2026-O0035)	Feb 2026	Alternate II Deviation 2026-O0035	Feb 2026 Feb 2026
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		
252.247-7028	Application for U.S. Government Shipping Documentation/ Instructions.	Jun 2012		

FAR Clauses Incorporated by Full Text

52.219-28 Postaward Small Business Program Rerepresentation.

(Jan 2025)

Postaward Small Business Program Rerepresentation (Jan 2025)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 325920, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it [] is, [] is not a small business concern under 325920 NAICS Code assigned to _____ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [] is, [] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [] is, [] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [] is, [] is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it [] is, [] is not a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it [] is, [] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that-

(i) It [] is, [] is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It [] is, [] is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [] The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[] Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.223-3 Hazardous Material Identification and Safety Data.

(Feb 2026)

HAZARDOUS MATERIAL IDENTIFICATION AND SAFETY DATA (FEB 2026)

(a) *Hazardous material*, as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The Offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Safety Data Sheet submitted under this contract.

Material (If none, insert <i>None</i>)	Identification No.
_____	_____
_____	_____
_____	_____

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.223-11 Ozone-Depleting Substances.

(Feb 2026)

OZONE-DEPLETING SUBSTANCES (FEB 2026)

(a) *Definition.* As used in this clause-

Ozone-depleting substance means any substance the Environmental Protection Agency designates in 40 CFR part 82 as-

(1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or

(2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) *Requirement.* In accordance with 40 CFR 82.84(a)(5), the Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j(b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

Warning: Contains (or manufactured with, if applicable) * ____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(End of clause)

52.247-1 Commercial Bill of Lading Notations.

(Feb 2006)

Commercial Bill of Lading Notations (Feb 2006)

When the Contracting Officer authorizes supplies to be shipped on a commercial bill of lading and the Contractor will be reimbursed these transportation costs as direct allowable costs, the Contractor shall ensure before shipment is made that the commercial shipping documents are annotated with either of the following notations, as appropriate:

(a) If the Government is shown as the consignor or the consignee, the annotation shall be:

Transportation is for the Agency shown in Section H and the actual total transportation charges paid to the carrier(s) by the consignor or consignee are assignable to, and shall be reimbursed by, the Government.

(b) If the Government is not shown as the consignor or the consignee, the annotation shall be:

Transportation is for the Agency shown in Section H and the actual total transportation charges paid to the carrier(s) by the consignor or consignee shall be reimbursed by the Government, pursuant to cost-reimbursement contract No. _____. This may be confirmed by contacting _____ [Name and address of the contract administration office listed in the contract].

(End of clause)

52.248-1 Value Engineering.

(Jun 2020)

VALUE ENGINEERING (JUN 2020)

(a) *General.* The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any net acquisition savings realized from accepted VECP's, in accordance with the incentive sharing rates in paragraph (f) of this clause.

(b) *Definitions.*

Acquisition savings, as used in this clause, means savings resulting from the application of a VECP to contracts awarded by the same contracting office or its successor for essentially the same unit. Acquisition savings include-

(1) Instant contract savings, which are the net cost reductions on this, the instant contract, and which are equal to the instant unit cost reduction multiplied by the number of instant contract units affected by the VECP, less the Contractor's allowable development and implementation costs;

(2) Concurrent contract savings, which are net reductions in the prices of other contracts that are definitized and ongoing at the time the VECP is accepted; and

(3) Future contract savings, which are the product of the future unit cost reduction multiplied by the number of future contract units in the sharing base. On an instant contract, future contract savings include savings on increases in quantities after VECP acceptance that are due to contract modifications, exercise of options, additional orders, and funding of subsequent year requirements on a multiyear contract.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contracting office includes any contracting office that the acquisition is transferred to, such as another branch of the agency or another agency's office that is performing a joint acquisition action.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Future unit cost reduction, as used in this clause, means the instant unit cost reduction adjusted as the Contracting Officer considers necessary for projected learning or changes in quantity during the sharing period. It is calculated at the time the VECP is accepted and applies either-

(1) Throughout the sharing period, unless the Contracting Officer decides that recalculation is necessary because conditions are significantly different from those previously anticipated; or

(2) To the calculation of a lump-sum payment, which cannot later be revised.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistics support. The term does not include the normal administrative costs of processing the VECP or any increase in this contract's cost or price resulting from negative instant contract savings.

Instant contract, as used in this clause, means this contract, under which the VECP is submitted. It does not include increases in quantities after acceptance of the VECP that are due to contract modifications, exercise of options, or additional orders. If this is a multiyear contract, the term does not include quantities funded after VECP acceptance. If this contract is a fixed-price contract with prospective price redetermination, the term refers to the period for which firm prices have been established.

Instant unit cost reduction means the amount of the decrease in unit cost of performance (without deducting any Contractor's development or implementation costs) resulting from using the VECP on this, the instant contract. If this is a service contract, the instant unit cost reduction is normally equal to the number of hours per line-item task saved by using the VECP on this contract, multiplied by the appropriate contract labor rate.

Negative instant contract savings means the increase in the cost or price of this contract when the acceptance of a VECP results in an excess of the Contractor's allowable development and implementation costs over the product of the instant unit cost reduction multiplied by the number of instant contract units affected.

Net acquisition savings means total acquisition savings, including instant, concurrent, and future contract savings, less Government costs.

Sharing base, as used in this clause, means the number of affected end items on contracts of the contracting office accepting the VECP.

Sharing period, as used in this clause, means the period beginning with acceptance of the first unit incorporating the VECP and ending at a calendar date or event determined by the contracting officer for each VECP.

Unit, as used in this clause, means the item or task to which the Contracting Officer and the Contractor agree the VECP applies.

Value engineering change proposal (VECP) means a proposal that-

(1) Requires a change to this, the instant contract, to implement; and

(2) Results in reducing the overall projected cost to the agency without impairing essential functions or characteristics; *provided*, that it does not involve a change-

(i) In deliverable end item quantities only;

(ii) In research and development (R&D) end items or R&D test quantities that is due solely to results of previous testing under this contract; or

(iii) To the contract type only.

(c) *VECP preparation*. As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (8) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

(1) A description of the difference between the existing contract requirement and the proposed requirement, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, the effect of the change on the end item's performance, and any pertinent objective test data.

(2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.

(3) Identification of the unit to which the VECP applies.

(4) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under the Subcontracts paragraph of this clause.

(5) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.

(6) A prediction of any effects the proposed change would have on collateral costs to the agency.

(7) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(8) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) *Submission*. The Contractor shall submit VECP's to the Contracting Officer, unless this contract states otherwise. If this contract is administered by other than the contracting office, the Contractor shall submit a copy of the VECP simultaneously to the Contracting Officer and to the Administrative Contracting Officer.

(e) *Government action*.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause and made either before or within a reasonable time after contract performance is completed. Until such a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) *Sharing rates*. If a VECP is accepted, the Contractor shall share in net acquisition savings according to the percentages shown in the table below. The percentage paid the Contractor depends upon-

(1) This contract's type (fixed-price, incentive, or cost-reimbursement);

(2) The sharing arrangement specified in paragraph (a) of this clause (incentive, program requirement, or a combination as delineated in the Schedule); and

(3) The source of the savings (the instant contract, or concurrent and future contracts), as follows:

Contractor's Share of Net Acquisition Savings (Figure in Percent)				
Contract Type	Incentive (Voluntary)		Program Requirement (Mandatory)	
	Instant Contract Rate	Concurrent and Future Contract Rate	Instant Contract Rate	Concurrent and Future Contract Rate
Fixed-price (includes fixed-price-award-fee; excludes other fixed-price incentive contracts)	*50	*50	25	25
Incentive (fixed-price or cost) (other than award fee)	(**)	*50	(**)	25
Cost-reimbursement (includes cost-plus-award-fee; excludes other cost-type incentive contracts)	***25	***25	15	15
* The Contracting Office may increase the Contractor's sharing rate to as high as 75 percent for each VECP.				
** Same sharing arrangement as the contract's profit or fee adjustment formula.				
*** The Contracting Office may increase the Contractor's sharing rate to as high as 50 percent for each VECP.				

(g) Calculating net acquisition savings.

(1) Acquisition savings are realized when (i) the cost or price is reduced on the instant contract, (ii) reductions are negotiated in concurrent contracts, (iii) future contracts are awarded, or (iv) agreement is reached on a lump-sum payment for future contract savings (see paragraph (i)(4) of this clause). Net acquisition savings are first realized, and the Contractor shall be paid a share, when Government costs and any negative instant contract savings have been fully offset against acquisition savings.

(2) Except in incentive contracts, Government costs and any price or cost increases resulting from negative instant contract savings shall be offset against acquisition savings each time such savings are realized until they are fully offset. Then, the Contractor's share is calculated by multiplying net acquisition savings by the appropriate Contractor's percentage sharing rate (see paragraph (f) of this clause). Additional Contractor shares of net acquisition savings shall be paid to the Contractor at the time realized.

(3) If this is an incentive contract, recovery of Government costs on the instant contract shall be deferred and offset against concurrent and future contract savings. The Contractor shall share through the contract incentive structure in savings on the instant contract items affected. Any negative instant contract savings shall be added to the target cost or to the target price and ceiling price, and the amount shall be offset against concurrent and future contract savings.

(4) If the Government does not receive and accept all items on which it paid the Contractor's share, the Contractor shall reimburse the Government for the proportionate share of these payments.

(h) *Contract adjustment.* The modification accepting the VECP (or a subsequent modification issued as soon as possible after any negotiations are completed) shall-

(1) Reduce the contract price or estimated cost by the amount of instant contract savings, unless this is an incentive contract;

(2) When the amount of instant contract savings is negative, increase the contract price, target price and ceiling price, target cost, or estimated cost by that amount;

(3) Specify the Contractor's dollar share per unit on future contracts, or provide the lump-sum payment;

(4) Specify the amount of any Government costs or negative instant contract savings to be offset in determining net acquisition savings realized from concurrent or future contract savings; and

(5) Provide the Contractor's share of any net acquisition savings under the instant contract in accordance with the following:

(i) Fixed-price contracts-add to contract price.

(ii) Cost-reimbursement contracts-add to contract fee.

(i) Concurrent and future contract savings.

(1) Payments of the Contractor's share of concurrent and future contract savings shall be made by a modification to the instant contract in accordance with paragraph (h)(5) of this clause. For incentive contracts, shares shall be added as a separate firm-fixed-price line item on the instant contract. The Contractor shall maintain records adequate to identify the first delivered unit for 3 years after final payment under this contract.

(2) The Contracting Officer shall calculate the Contractor's share of concurrent contract savings by-

(i) Subtracting from the reduction in price negotiated on the concurrent contract any Government costs or negative instant contract savings not yet offset; and

(ii) Multiplying the result by the Contractor's sharing rate.

(3) The Contracting Officer shall calculate the Contractor's share of future contract savings by-

(i) Multiplying the future unit cost reduction by the number of future contract units scheduled for delivery during the sharing period;

(ii) Subtracting any Government costs or negative instant contract savings not yet offset; and

(iii) Multiplying the result by the Contractor's sharing rate.

(4) When the Government wishes and the Contractor agrees, the Contractor's share of future contract savings may be paid in a single lump sum rather than in a series of payments over time as future contracts are awarded. Under this alternate procedure, the future contract savings may be calculated when the VECP is accepted, on the basis of the Contracting Officer's forecast of the number of units that will be delivered during the sharing period. The Contractor's share shall be included in a modification to this contract (see paragraph (h)(3) of this clause) and shall not be subject to subsequent adjustment.

(5) *Alternate no-cost settlement method.* When, in accordance with section 48.104-4 of the Federal Acquisition Regulation (FAR), the Government and the Contractor mutually agree to use the no-cost settlement method, the following applies:

(i) The Contractor will keep all the savings on the instant contract and on its concurrent contracts only.

(ii) The Government will keep all the savings resulting from concurrent contracts placed on other sources, savings from all future contracts, and all collateral savings.

(j) *Collateral savings.* If a VECP is accepted, the Contracting Officer will increase the instant contract amount, as specified in paragraph (h)(5) of this clause, by a rate from 20 to 100 percent, as determined by the Contracting Officer, of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not

exceed the contract's firm-fixed-price, target price, target cost, or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer will be the sole determiner of the amount of collateral savings.

(k) *Relationship to other incentives.* Only those benefits of an accepted VECP not rewardable under performance, design-to-cost (production unit cost, operating and support costs, reliability and maintainability), or similar incentives shall be rewarded under this clause. However, the targets of such incentives affected by the VECP shall not be adjusted because of VECP acceptance. If this contract specifies targets but provides no incentive to surpass them, the value engineering sharing shall apply only to the amount of achievement better than target.

(l) *Subcontracts.* The Contractor shall include an appropriate value engineering clause in any subcontract-valued at or above the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, and may include one in subcontracts of lesser value. In calculating any adjustment in this contract's price for instant contract savings (or negative instant contract savings), the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs, and any value engineering incentive payments to a subcontractor, clearly resulting from a VECP accepted by the Government under this contract. The Contractor may choose any arrangement for subcontractor value engineering incentive payments, *provided*, that the payments shall not reduce the Government's share of concurrent or future contract savings or collateral savings.

(m) *Data.* The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

These data, furnished under the Value Engineering clause of contract _____, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses at <https://www.acquisition.gov/browse/index/far>

DFARS Clauses: <http://www.acq.osd.mil/dpap/dfars/dfarspgi/current/>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: ____
Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

CRITICAL SAFETY ITEMS (AUG 2011)

(a) *Definitions.*

"Aviation critical safety item" means a part, an assembly, installation equipment, launch equipment, recovery equipment, or support equipment for an aircraft or aviation weapon system if the part, assembly, or equipment contains a characteristic any failure, malfunction, or absence of which could cause-

- (i) A catastrophic or critical failure resulting in the loss of, or serious damage to, the aircraft or weapon system;
- (ii) An unacceptable risk of personal injury or loss of life; or
- (iii) An uncommanded engine shutdown that jeopardizes safety.

"Design control activity" means-

- (i) With respect to an aviation critical safety item, the systems command of a military department that is specifically responsible for ensuring the airworthiness of an aviation system or equipment, in which an aviation critical safety item is to be used; and
- (ii) With respect to a ship critical safety item, the systems command of a military department that is specifically responsible for ensuring the seaworthiness of a ship or ship equipment, in which a ship critical safety item is to be used.

"Ship critical safety item" means any ship part, assembly, or support equipment containing a characteristic, the failure, malfunction, or absence of which could cause-

- (i) A catastrophic or critical failure resulting in loss of, or serious damage to, the ship; or
- (ii) An unacceptable risk of personal injury or loss of life.

(b) *Identification of critical safety items.* One or more of the items being procured under this contract is an aviation or ship critical safety item. The following items have been designated aviation critical safety items or ship critical safety items by the designated design control activity:

1377-01-454-9321; SS67; MK109 Mod 1 Canopy Jettison Rocket Motor (CJRM)

(c) *Heightened quality assurance surveillance.* Items designated in paragraph (b) of this clause are subject to heightened, risk-based surveillance by the designated quality assurance representative.

(End of clause)

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item

identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
<u>SEE SCHEDULE</u>	=====
=====	=====
=====	=====

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
<u>SEE SCHEDULE</u>	=====
=====	=====
=====	=====

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.**

(4) Issuing agency code (if concatenated unique item identifier is used).**

(5) Enterprise identifier (if concatenated unique item identifier is used).**

(6) Original part number (if there is serialization within the original part number).**

(7) Lot or batch number (if there is serialization within the lot or batch number).**

- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) _____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts.* If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.223-7001 Hazard Warning Labels.

(Dec 1991)

HAZARD WARNING LABELS (DEC 1991)

(a) "Hazardous material," as used in this clause, is defined in the Hazardous Material Identification and Material Safety Data clause of this contract.

(b) The Contractor shall label the item package (unit container) of any hazardous material to be delivered under this contract in accordance with the Hazard Communication Standard (29 CFR 1910.1200 et seq). The Standard requires that the hazard warning label conform to the requirements of the standard unless the material is otherwise subject to the labelling requirements of one of the following statutes:

- (1) Federal Insecticide, Fungicide and Rodenticide Act;
- (2) Federal Food, Drug and Cosmetics Act;
- (3) Consumer Product Safety Act;
- (4) Federal Hazardous Substances Act; or
- (5) Federal Alcohol Administration Act.

(c) The Offeror shall list which hazardous material listed in the Hazardous Material Identification and Material Safety Data clause of this contract will be labelled in accordance with one of the Acts in paragraphs (b)(1) through (5) of this clause instead of the Hazard Communication Standard. Any hazardous material not listed will be interpreted to mean that a label is required in accordance with the Hazard Communication Standard.

MATERIAL (If None, Insert "None.")	ACT
_____	_____
_____	_____
_____	_____

(d) The apparently successful Offeror agrees to submit, before award, a copy of the hazard warning label for all hazardous materials not listed in paragraph (c) of this clause. The Offeror shall submit the label with the Material Safety Data Sheet being furnished under the Hazardous Material Identification and Material Safety Data clause of this contract.

(e) The Contractor shall also comply with MIL-STD-129, Marking for Shipment and Storage (including revisions adopted during the term of this contract).

(End of clause)

252.223-7002 Safety Precautions for Ammunition and Explosives.

(Nov 2023)

SAFETY PRECAUTIONS FOR AMMUNITION AND EXPLOSIVES (NOV 2023)

(a) *Definition.* "Ammunition and explosives," as used in this clause-

(1) Means liquid and solid propellants and explosives, pyrotechnics, incendiaries and smokes in the following forms:

- (i) Bulk,
- (ii) Ammunition;
- (iii) Rockets;
- (iv) Missiles;
- (v) Warheads;
- (vi) Devices; and
- (vii) Components of (i) through (vi), except for wholly inert items.

(2) This definition does not include the following, unless the Contractor is using or incorporating these materials for initiation, propulsion, or detonation as an integral or component part of an explosive, an ammunition or explosive end item, or of a weapon system-

- (i) Inert components containing no explosives, propellants, or pyrotechnics;
- (ii) Flammable liquids;
- (iii) Acids;
- (iv) Oxidizers;
- (v) Powdered metals; or
- (vi) Other materials having fire or explosive characteristics.

(b) *Safety requirements.*

(1) The Contractor shall comply with the requirements of DoD Manual 4145.26, DoD Contractors' Safety Manual for Ammunition and Explosives, hereafter referred to as "the manual," in effect on the date of the solicitation for this contract. The Contractor shall also comply with any other additional requirements included in the schedule of this contract.

(2) The Contractor shall allow the Government access to the Contractor's facilities, personnel, and safety program documentation. The Contractor shall allow authorized Government representatives to evaluate safety programs, implementation, and facilities.

(c) *Noncompliance with the manual.*

(1) If the Contracting Officer notifies the Contractor of any noncompliance with the manual or schedule provisions, the Contractor shall take immediate steps to correct the noncompliance. The Contractor is not entitled to reimbursement of costs incurred to correct noncompliances unless such reimbursement is specified elsewhere in the contract.

(2) The Contractor has 30 days from the date of notification by the Contracting Officer to correct the noncompliance and inform the Contracting Officer of the actions taken. The Contracting Officer may direct a different time period for the correction of noncompliances.

(3) If the Contractor refuses or fails to correct noncompliances within the time period specified by the Contracting Officer, the Government has the right to direct the Contractor to cease performance on all or part of this contract. The Contractor shall not resume performance until the Contracting Officer is satisfied that the corrective action was effective and the Contracting Officer so informs the Contractor.

(4) The Contracting Officer may remove Government personnel at any time the Contractor is in noncompliance with any safety requirement of this clause.

(5) If the direction to cease work or the removal of Government personnel results in increased costs to the Contractor, the Contractor shall not be entitled to an adjustment in the contract price or a change in the delivery or performance schedule unless the Contracting Officer later determines that the Contractor had in fact complied with the manual or schedule provisions. If the Contractor is entitled to an equitable adjustment, it shall be made in accordance with the Changes clause of this contract.

(d) *Mishaps.* If a mishap involving ammunition or explosives occurs, the Contractor shall-

- (1) Notify the Contracting Officer immediately;
- (2) Conduct an investigation in accordance with other provisions of this contract or as required by the Contracting Officer; and
- (3) Submit a written report to the Contracting Officer.

(e) *Contractor responsibility for safety.*

(1) Nothing in this clause, nor any Government action or failure to act in surveillance of this contract, shall relieve the Contractor of its responsibility for the safety of-

- (i) The Contractor's personnel and property;
- (ii) The Government's personnel and property; or
- (iii) The general public.

(2) Nothing in this clause shall relieve the Contractor of its responsibility for complying with applicable Federal, State, and local laws, ordinances, codes, and regulations (including those requiring the obtaining of licenses and permits) in connection with the performance of this contract.

(f) *Contractor responsibility for contract performance.*

(1) Neither the number or frequency of inspections performed by the Government, nor the degree of surveillance exercised by the Government, relieve the Contractor of its responsibility for contract performance.

(2) If the Government acts or fails to act in surveillance or enforcement of the safety requirements of this contract, this does not impose or add to any liability of the Government.

(g) *Subcontractors.*

(1) The Contractor shall insert this clause, including this paragraph (g), in every subcontract that involves ammunition or explosives.

(i) The clause shall include a provision allowing authorized Government safety representatives to evaluate subcontractor safety programs, implementation, and facilities as the Government determines necessary.

(ii) **NOTE:** The Government Contracting Officer or authorized representative shall notify the prime Contractor of all findings concerning subcontractor safety and compliance with the manual. The Contracting Officer or authorized representative may furnish copies to the subcontractor. The Contractor in turn shall communicate directly with the subcontractor, substituting its name for references to "the Government". The Contractor and higher tier subcontractors shall also include provisions to allow direction to cease performance of the subcontract if a serious uncorrected or recurring safety deficiency potentially causes an imminent hazard to DoD personnel, property, or contract performance.

(2) The Contractor agrees to ensure that the subcontractor complies with all contract safety requirements. The Contractor will determine the best method for verifying the adequacy of the subcontractor's compliance.

(3) The Contractor shall ensure that the subcontractor understands and agrees to the Government's right to access to the subcontractor's facilities, personnel, and safety program documentation to perform safety surveys. The Government performs these safety surveys of subcontractor facilities solely to prevent the occurrence of any mishap which would endanger the safety of DoD personnel or otherwise adversely impact upon the Government's contractual interests.

(4) The Contractor shall notify the Contracting Officer or authorized representative before issuing any subcontract when it involves ammunition or explosives. If the proposed subcontract represents a change in the place of performance, the Contractor shall request approval for such change in accordance with the clause of this contract entitled "Change in Place of Performance--Ammunition and Explosives".

(End of clause)

252.223-7007 Safeguarding Sensitive Conventional Arms, Ammunition, and Explosives.

(Nov 2023)

SAFEGUARDING SENSITIVE CONVENTIONAL ARMS, AMMUNITION, AND EXPLOSIVES (NOV 2023)

(a) *Definition.* As used in this clause-

"Arms, ammunition, and explosives (AA&E)," means those items within the scope of DoD Manual 5100.76, Physical Security of Sensitive Conventional Arms, Ammunition, and Explosives.

(b) The requirements of DoD Manual 5100.76 apply to the following items of AA&E being developed, produced, manufactured, or purchased for the Government, or provided to the Contractor as Government-furnished property under this contract:

NOMENCLATURE	NATIONAL STOCK NUMBER	SENSITIVITY/ CATEGORY
<u>MK109 MOD 1 Canopy Jettison Rocket Motor</u>	<u>1377-01-454-9321</u>	<u>U</u>
<u>PVU-1/A Primer</u>	<u>1377-01-108-1438</u>	<u>U</u>

(c) The Contractor shall comply with the requirements of DoD Manual 5100.76, as specified in the statement of work. The edition of DoD Manual 5100.76 in effect on the date of issuance of the solicitation for this contract shall apply.

(d) The Contractor shall allow representatives of the Defense Counterintelligence and Security Agency (DCSA) and representatives of other appropriate offices of the Government, access at all reasonable times into its facilities and those of its subcontractors, for the purpose of performing surveys, inspections, and investigations necessary to review compliance with the physical security standards applicable to this contract.

(e) The Contractor shall notify the cognizant DCSA field office of any subcontract involving AA&E within 10 days after award of the subcontract.

(f) *Subcontracts.* The Contractor shall ensure that the requirements of this clause are included in all subcontracts, at every tier-

- (1) For the development, production, manufacture, or purchase of AA&E; or
- (2) When AA&E will be provided to the subcontractor as Government-furnished property.

(g) Nothing in this clause shall relieve the Contractor of its responsibility for complying with applicable Federal, state, and local laws, ordinances, codes, and regulations (including requirements for obtaining licenses and permits) in connection with the performance of this contract.

(End of clause)

252.225-7027 Restriction on Contingent Fees for Foreign Military Sales.

(Apr 2003)

RESTRICTION ON CONTINGENT FEES FOR FOREIGN MILITARY SALES

(APR 2003)

(a) Except as provided in paragraph (b) of this clause, contingent fees, as defined in the Covenant Against Contingent Fees clause of this contract, are generally an allowable cost, provided the fees are paid to-

- (1) A bona fide employee of the Contractor; or
- (2) A bona fide established commercial or selling agency maintained by the Contractor for the purpose of securing business.

(b) For foreign military sales, unless the contingent fees have been identified and payment approved in writing by the foreign customer before contract award, the following contingent fees are unallowable under this contract:

(1) For sales to the Government(s) of: Australia, Taiwan, Egypt, Greece, Israel, Japan, Jordan, Republic of Korea, Kuwait, Pakistan, Philippines, Saudi Arabia, Turkey, Thailand, or Venezuela (Air Force), contingent fees in any amount.

(2) For sales to Governments not listed in paragraph (b)(1) of this clause, contingent fees exceeding \$50,000 per foreign military sale case.

(End of clause)

252.227-7989 Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services. (DEVIATION 2026-O0036)

(Feb 2026) Deviation 2026-O0036 (Feb 2026)

RIGHTS IN TECHNICAL DATA, COMPUTER SOFTWARE, AND COMPUTER SOFTWARE DOCUMENTATION--OTHER THAN COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (DEVIATION 2026-O0036) (FEB 2026)

(a) *Definitions.* As used in this clause--

"Commercial computer software" means software developed or regularly used for nongovernmental purposes which--

(1) Has been sold, leased, or licensed to the public;

(2) Has been offered for sale, lease, or license to the public;

(3) Has not been offered, sold, leased, or licensed to the public but will be available for commercial sale, lease, or license in time to satisfy the delivery requirements of this contract; or

(4) Satisfies a criterion expressed in paragraph (1), (2), or (3) of this definition and would require only minor modification to meet the requirements of this contract.

"Computer database" means a collection of data recorded in a form capable of being processed by a computer. The term does not include computer software.

"Computer program" means a set of instructions, rules, or routines recorded in a form that is capable of causing a computer to perform a specific operation or series of operations.

"Computer software" means computer programs, source code, source code listings, object code listings, design details, algorithms, processes, flow charts, formulae and related material that would enable the software to be reproduced, recreated, or recompiled. Computer software does not include computer databases or computer software documentation.

"Computer software documentation" means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

"Covered Government support contractor" means a contractor (other than a litigation support contractor covered by 252.204-7014) under a contract, the primary purpose of which is to furnish independent and impartial advice or technical assistance directly to the Government in support of the Government's management and oversight of a program or effort, rather than to directly furnish an end item or service to accomplish a program or effort, provided that the contractor--

(1) Is not affiliated with the prime contractor or a first-tier subcontractor on the program or effort, or with any direct competitor of such prime contractor or any such first-tier subcontractor in furnishing end items or services of the type developed or produced on the program or effort; and

(2) Receives access to technical data or computer software for performance of a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

"Detailed manufacturing or process data" means technical data that describe the steps, sequences, and conditions of manufacturing, processing or assembly used by the manufacturer to produce an item or component or to perform a process.

"Developed" means--

(1) (Applicable to technical data other than computer software documentation.) An item, component, or process exists and is workable. Thus, the item or component must have been constructed or the process practiced. Workability is generally established when the item, component, or process has been analyzed or tested sufficiently to demonstrate to reasonable people skilled in the applicable art that there is a high probability that it will operate as intended. Whether, how much, and what type of analysis or testing is required to establish workability depends on the nature of the item, component, or process, and the state of the art. To be considered "developed," the item, component, or process need not be at the stage where it could be offered for sale or sold on the commercial market, nor must the item, component, or process be actually reduced to practice within the meaning of Title 35 of the United States Code;

(2) A computer program has been successfully operated in a computer and tested to the extent sufficient to demonstrate to reasonable persons skilled in the art that the program can reasonably be expected to perform its intended purpose;

(3) Computer software, other than computer programs, has been tested or analyzed to the extent sufficient to demonstrate to reasonable persons skilled in the art that the software can reasonably be expected to perform its intended purpose; or

(4) Computer software documentation the contractor must deliver under a contract has been written, in any medium, in sufficient detail to comply with requirements under that contract.

"Developed exclusively at private expense" means development was accomplished entirely with costs charged to indirect cost pools, costs not allocated to a Government contract, or any combination thereof.

(1) Private expense determinations should be made at the lowest practicable level.

(2) Under fixed-price contracts, when total costs are greater than the firm-fixed-price or ceiling price of the contract, the additional development costs necessary to complete development shall not be considered when determining whether development was at Government, private, or mixed expense.

"Developed exclusively with Government funds" means development was not accomplished exclusively or partially at private expense.

"Developed with mixed funding" means development was accomplished partially with costs charged to indirect cost pools and/or costs not allocated to a government contract, and partially with costs charged directly to a government contract.

"Form, fit, and function data" means technical data that describe the required overall physical, functional, and performance characteristics (along with the qualification requirements, if applicable) of an item, component, or process to the extent necessary to permit identification of physically and functionally interchangeable items.

"Generated" means, with regard to technical data or computer software, first created in the performance of this contract.

"Government purpose" means any activity in which the United States Government is a party, including cooperative agreements with international or multi-national defense organizations, or sales or transfers by the United States Government to foreign governments or international organizations. Government purposes include competitive procurement, but do not include the rights to use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation for commercial purposes or authorize others to do so.

"Government purpose rights" means the rights to--

(1) Use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation within the Government without restriction; and

(2) Release or disclose technical data, computer software, or computer software documentation outside the Government and authorize persons to whom release or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose that data or software for United States Government purposes.

"Limited rights" means the rights to use, modify, reproduce, release, perform, display, or disclose technical data, in whole or in part, within the Government. The Government may not, without the written permission of the party asserting limited rights, release or disclose the technical data outside the Government, use the technical data for manufacture, or authorize the technical data to be used by another party, except that the Government may reproduce, release, or disclose such data or authorize the use or reproduction of the data by persons outside the Government if--

(1) The reproduction, release, disclosure, or use is--

(i) Necessary for emergency repair and overhaul; or

(ii) A release or disclosure to--

(A) A covered Government support contractor in performance of its covered Government support contract for use, modification, reproduction, performance, display, or release or disclosure to a person authorized to receive limited rights technical data; or

(B) A foreign government, of technical data other than detailed manufacturing or process data, when use of such data by the foreign government is in the interest of the Government and is required for evaluational or informational purposes;

(2) The recipient of the technical data is subject to a prohibition on the further reproduction, release, disclosure, or use of the technical data; and

(3) The contractor or subcontractor asserting the restriction is notified of such reproduction, release, disclosure, or use.

"Minor modification" means a modification that does not significantly alter the nongovernmental function or purpose of the software or is of the type customarily provided in the commercial marketplace.

"Other than commercial computer software" means software that does not qualify as commercial computer software under the definition of "commercial computer software" of this clause.

"Restricted rights" apply only to other than commercial computer software and mean the Government's rights to--

(1) Use a computer program with one computer at one time. The program may not be accessed by more than one terminal or central processing unit or time shared unless otherwise permitted by this contract;

(2) Transfer a computer program to another Government agency without the further permission of the Contractor if the transferor destroys all copies of the program and related computer software documentation in its possession and notifies the licensor of the transfer. Transferred programs remain subject to the provisions of this clause;

(3) Make a reasonable number of copies of the computer software required for the purposes of safekeeping (archive), backup, modification, or other activities authorized in paragraphs (1), (2), (4) and (5) of this definition;

(4) Modify computer software provided that the Government may--

(i) Use the modified software only as provided in paragraphs (1) and (3) of this definition; and

(ii) Not release or disclose the modified software except as provided in paragraphs (2) and (5) of this clause;

(5) Use, modify, reproduce, perform, display, or release or disclose the computer software, and permit contractors, subcontractors, or covered Government support contractors to do so, for purposes set forth in subparagraph (i) of this paragraph, subject to the conditions set forth in subparagraphs (ii) of this paragraph:

(i)(A) In performance of service contracts (see FAR 37.101), to diagnose and correct deficiencies, to modify the software to enable a computer program to be combined with, adapted to, or merged with other computer programs, or when necessary to respond to urgent tactical situations, provided that the Government notifies the party which has granted restricted rights that any such release or disclosure to particular contractors or subcontractors was made;

(B) To perform emergency repairs or overhaul of items or components procured under this or a related contract, when necessary to perform such repairs or overhaul; or

(C) For the management and oversight of a program or effort by a person authorized to receive restricted rights computer software, including in the performance of covered Government support contracts.

(ii)(A) Any contractor, subcontractor, or covered Government support contractor receiving access to the software for the purposes of subparagraphs (i), (ii), or (iii) of this paragraph shall be subject to the use and nondisclosure agreement at 227.7103-7 or be performing a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends;

(B) The Government must not permit any recipient of the software under this paragraph to decompile, disassemble, or reverse engineer the software, or use software decompiled, disassembled, or reverse engineered by the Government pursuant to paragraph (4) of this definition, for any other purpose; and

(C) Any use, modification, reproduction, performance, display, release, or disclosure of the computer software under this paragraph remains subject to the limitations in paragraphs (1) through (4) of this definition.

"Small Business Innovation Research/Small Business Technology Transfer (SBIR/STTR) data" means all technical data or computer software developed or generated in the performance of a phase I, II, or III SBIR/STTR contract or subcontract.

"Technical data" means recorded information, regardless of the form or method of the recording, of a scientific or technical nature (including computer software documentation). The term does not include computer software or financial, administrative, cost or pricing, or management information, or information incidental to contract administration.

"Unlimited rights" means rights to use, modify, reproduce, perform, display, release, or disclose technical data, computer software, or computer software documentation in whole or in part, in any manner, and for any purpose whatsoever, and to have or authorize others to do so.

(b) *Applicability.* (1) Except as provided in paragraph (b)(2) of this clause--

(i) This clause governs all technical data related to other than commercial products or commercial services or to any portion of a commercial product or commercial service that was developed in any part at Government expense;

(ii) This clause governs all other than commercial computer software or other than commercial computer software documentation; and

(iii) The clause at DFARS 252.227-7990, Technical Data--Commercial Products and Commercial Services, governs the technical data related to any portion of a commercial product or commercial service that was developed exclusively at private expense.

(2) The clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, governs technical data that are SBIR/STTR data.

(c) *Rights in technical data and computer software.* The Contractor grants or shall obtain for the Government the following royalty free, worldwide, nonexclusive, irrevocable license rights:

(1) *Unlimited rights.* The Government shall have unlimited rights in technical data, computer software, or computer software documentation that are--

(i) Data related to an item, component, or process which has been or will be developed exclusively with Government funds;

(ii) Studies, analyses, test data, or similar data produced for this contract, when the study, analysis, test, or similar work was specified as an element of performance;

(iii) Technical data created exclusively with Government funds in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes;

(iv) Form, fit, and function data;

(v) Technical data necessary for installation, operation, maintenance, or training purposes (other than detailed manufacturing or process data);

(vi) Government-furnished corrections or changes to--

(A) Technical data furnished to the Contractor by the Government; or

(B) Computer software or computer software documentation;

(vii) Data, computer software, or computer software documentation that is publicly available or previously released or disclosed by the Contractor or subcontractor without restrictions on further use, release or disclosure, other than a release or disclosure resulting from the sale, transfer, or other assignment of interest in the technical data to another party or the sale or transfer of some or all of a business entity or its assets to another party;

(viii) Data, computer software, or computer software documentation in which the Government has obtained unlimited rights under another Government contract or as a result of negotiations;

(ix) Data furnished to the Government, under this or any other Government contract or subcontract, with--

(A) Government purpose license rights or limited rights and the restrictive condition(s) has/have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such data for commercial purposes has expired; or

(x) Computer software developed exclusively with Government funds;

(xi) Computer software documentation the contractor must deliver under this contract; or

(xvii) Computer software or computer software documentation furnished to the Government, under this or any other Government contract or subcontract with--

(A) Restricted rights in computer software, limited rights in technical data, or government purpose license rights and the restrictive conditions have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such software or documentation for commercial purposes has expired.

(2) *Government purpose rights.* (i) The Government shall have government purpose rights for a 5-year period, or such other period as may be negotiated, in technical data or computer software--

(A) Related to items, components, or processes developed with mixed funding except when the Government is entitled to unlimited rights in such data or software as provided in paragraphs (c)(1)(ii), (c)(1)(iv) through (c)(1)(ix), and (c)(1)(xii) through (c)(1)(x)(v)(i) of this clause; or

(B) Created with mixed funding in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The 5-year period, or such other period as may have been negotiated, shall begin upon execution of the contract, subcontract, letter contract (or similar contractual instrument), contract modification, or option exercise that required development of the items, components, or processes, development of the computer software, or creation of the data described in paragraph (c)(2)(i)(B) of this clause. Upon expiration of the 5-year or other negotiated period, the Government shall have unlimited rights in the technical data or computer software.

(iii) The Government will not release or disclose technical data or computer software in which it has government purpose rights unless--

(A) Prior to release or disclosure, the intended recipient completes the nondisclosure agreement at DFARS 227.7103-7; or

(B) The recipient is a Government contractor receiving access to the data or software for performance of a Government contract that contains the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

(iv) The Contractor has the exclusive right, including the right to license others, to use technical data or computer software in which the Government has obtained government purpose rights under this contract for any commercial purpose during the time period specified in the government purpose rights legend prescribed in paragraph (g)(3) of this clause.

(3) *Limited rights.* (i) Except as provided in paragraphs (c)(1)(ii) and (c)(1)(iv) through (c)(1)(ix) of this clause, the Government shall have limited rights in technical data--

(A) Related to items, components, or processes developed exclusively at private expense and marked with the limited rights legend prescribed in paragraph (g) of this clause; or

(B) Created exclusively at private expense in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The Government will require a recipient of limited rights data for emergency repair or overhaul to destroy the data and all copies in its possession promptly following completion of the emergency repair/overhaul and to notify the Contractor that the data have been destroyed.

(iii) The Contractor, its subcontractors, and suppliers are not required to provide the Government additional rights to use, modify, reproduce, release, perform, display, or disclose technical data furnished to the Government with limited rights. However, if the Government desires

to obtain additional rights in technical data in which it has limited rights, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all technical data for which the Government has been granted additional rights and specifies those additional rights.

(iv) The Contractor acknowledges that--

- (A) The Government is authorized to release or disclose limited rights data to covered Government support contractors;
- (B) The Government will notify the contractor of such release or disclosure;
- (C) The Contractor or the party asserting restrictions in the limited rights legend may--

(1) Require each covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding use of the data; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the limited rights data as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(4) *Restricted rights.* (i) The Government shall have restricted rights in other than commercial computer software the contractor must deliver, or that is otherwise provided, to the Government under this contract that was developed exclusively at private expense.

(ii) The Contractor, its subcontractors, or suppliers are not required to provide the Government additional rights in other than commercial computer software delivered or otherwise provided to the Government with restricted rights. However, if the Government desires to obtain additional rights in such software, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all other than commercial computer software for which the Government has been granted additional rights and specifies those additional rights.

(iii) The Contractor acknowledges that--

- (A) The Government is authorized to release or disclose restricted rights computer software to covered Government support contractors;
- (B) The Government will notify the Contractor of such release or disclosure;
- (C) The Contractor or the party asserting restrictions in the restricted rights legend may--

(1) Require each such covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding the use of the software; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the restricted rights software as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(5) *Specifically negotiated license rights.* The standard license rights granted to the Government under paragraphs (c)(1) through (c)(4) of this clause, including the period during which the Government shall have government purpose rights in technical data or computer software, may be modified by mutual agreement but shall not provide the Government lesser rights than provided in the definition of "limited rights" or restricted rights" of this clause. Any negotiated rights shall be identified in a license agreement made part of this contract.

(6) *Prior government rights.* Technical data or computer software that will be delivered, furnished, or otherwise provided to the Government under this contract, in which the Government has previously obtained rights shall be delivered, furnished, or provided with the preexisting rights, unless--

(i) The parties have agreed otherwise; or

(ii) The restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose the data or software have expired or no longer apply.

(7) *Release from liability.* The Contractor agrees to release the Government from liability for any authorized release or disclosure of technical data or computer software made in accordance with this clause or any negotiated license agreement. This release from liability for the Government also applies to releases or disclosures made by a third party who received the data or software from an authorized recipient. For any unauthorized use or disclosure by such third parties of technical data or computer software marked with restrictive legends, the Contractor agrees to seek relief solely from that party.

(d) *Contractor rights in technical data and computer software.* The Contractor retains all rights not granted to the Government.

(e) *Third party copyrighted data and software.* The Contractor shall not, without the written approval of the Contracting Officer, incorporate any copyrighted data or software in the technical data or computer software the contractor must deliver under this contract unless the Contractor is the copyright owner or has obtained license rights for the Government of the appropriate scope set forth in paragraph (c) of this clause, and has affixed a statement of the license or licenses obtained on behalf of the Government and other persons to the data transmittal document.

(f) *Identification and delivery of data to be delivered with restrictions on use, release, or disclosure.* (1) This paragraph does not apply to restrictions based solely on copyright.

(2) Except as provided in paragraph (f)(3) of this clause, technical data or computer software that the Contractor asserts should be furnished to the Government with restrictions on use, release, or disclosure are identified in an attachment to this contract (the Attachment). The Contractor shall not deliver any data or software with restrictive markings unless the data are listed on the Attachment.

(3) In addition to the assertions made in the Attachment, the Contractor may identify other assertions after award when based on new information or inadvertent omissions unless the inadvertent omissions would have materially affected the source selection decision. The Contractor shall submit such identification and assertions to the Contracting Officer as soon as practicable prior to the scheduled date for delivery of the data or software, in the following format, and signed by an official authorized to contractually obligate the Contractor:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software			
The Contractor asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted--			
Technical Data or Computer Software to be Furnished With Restrictions ¹	Basis for Assertion ²	Asserted Rights Category ³	Name of Person Asserting Restrictions ⁴
(LIST)	(LIST)	(LIST)	(LIST)
=====	=====	=====	=====
¹ If the assertion is applicable to items, components or processes developed at private expense, identify both the data and each such item, component, or process.			
² Generally, the development of an item, component, process, or computer software at private expense, either exclusively or partially, is the only basis for asserting restrictions on the Government's rights to use, release, or disclose computer software or technical data related to such items, components, or processes. Indicate whether development was exclusively or partially at private expense. If development was not at private expense, enter the specific reason for asserting that the Government's rights should be restricted.			
³ Enter asserted rights category (e.g., rights in SBIR/STTR data generated under another contract, limited rights, restricted rights, or government purpose rights under this or a prior contract, or specifically negotiated licenses).			

⁴ Corporation, individual, or other person, as appropriate.

Date _____

Printed Name and Title _____

Signature _____

(End of identification and assertion)

(4) When requested by the Contracting Officer, the Contractor shall provide sufficient information to enable the Contracting Officer to evaluate the Contractor's assertions. The Contracting Officer reserves the right to add the Contractor's assertions to the Attachment and validate any listed assertion, at a later date, in accordance with the procedures in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract.

(g) *Marking requirements.* The Contractor, and its subcontractors or suppliers, may only assert restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software the Contractor must deliver under this contract by marking the deliverable data or software subject to restriction. Except as provided in paragraph (g)(7) of this clause, only the following legends are authorized under this contract: the government purpose rights legend at paragraph (g)(3) of this clause; the limited rights legend at paragraph (g)(4) of this clause; the restricted rights legend at paragraph (g)(5) of this clause; the special license rights legend at paragraph (g)(6) of this clause; and a notice of copyright as prescribed under 17 U.S.C. 401 or 402.

(1) *General marking instructions.* The Contractor, or its subcontractors or suppliers, shall conspicuously and legibly mark the appropriate legend on all technical data or computer software that qualify for such markings. The authorized legends shall be placed on the transmittal document or storage container and, for printed material, each page of the printed material containing technical data or computer software for which restrictions are asserted. When only portions of a page of printed material are subject to the asserted restrictions, such portions shall be identified by circling, underscoring, with a note, or other appropriate identifier. Technical data or computer software transmitted directly from one computer or computer terminal to another shall contain a notice of asserted restrictions. For software that will or might be used in combat or situations that simulate combat conditions, the contractor shall not insert instructions that interfere with or delay the operation of computer software in order to display a restrictive rights legend or other license statement at any time prior to or during use of the computer software, or otherwise cause such interference or delay, unless the Contracting Officer's written permission to deliver such software has been obtained prior to delivery. Reproductions of technical data or computer software or any portions thereof subject to asserted restrictions shall also reproduce the asserted restrictions.

(2) *Omitted markings.* (i) Technical data or computer software delivered or otherwise provided under this contract without restrictive markings will be presumed to have been delivered with unlimited rights. To the extent practicable, if the Contractor has requested permission (see paragraph (g)(2)(ii) of this clause) to correct an inadvertent omission of markings, the Contracting Officer will not release or disclose the technical data or computer software pending evaluation of the request.

(ii) The Contractor may request permission to have conforming and justified restrictive markings placed on unmarked technical data or computer software at its expense. The request must be received by the Contracting Officer within 6 months following the furnishing or delivery of such technical data or computer software, or any extension of that time approved by the Contracting Officer. The Contractor shall--

(A) Identify the technical data or computer software that should have been marked;

(B) Demonstrate that the omission of the marking was inadvertent, the proposed marking is justified and conforms with the requirements for the marking of technical data or computer software contained in this clause; and

(C) Acknowledge, in writing, that the Government has no liability with respect to any disclosure, reproduction, or use of the technical data or computer software made prior to the addition of the marking or resulting from the omission of the marking.

(3) *Government purpose rights markings.* Technical data or computer software delivered or otherwise furnished to the Government with government purpose rights shall be marked as follows:

GOVERNMENT PURPOSE RIGHTS

Contract Number _____
Contractor Name _____
Contractor Address _____
Expiration Date _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data or computer software are restricted by the government purpose rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. No restrictions apply after the expiration date shown above. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(4) *Limited rights markings.* Data delivered or otherwise furnished to the Government with limited rights shall be marked as follows:

LIMITED RIGHTS

Contract Number _____
Contractor Name _____
Contractor Address _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data are restricted by the limited rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such data must promptly notify the above named Contractor.

(End of legend)

(5) *Restricted rights markings.* Software delivered or otherwise furnished to the Government with restricted rights shall be marked as follows:

RESTRICTED RIGHTS

Contract Number _____
Contractor Name _____
Contractor Address _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose this software are restricted by the restricted rights license in the DFARS 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause contained in the above identified contract. Any reproduction of computer software or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such software must promptly notify the above named Contractor.

(End of legend)

(6) Special license rights markings. (i) Technical data or computer software in which the Government's rights stem from a specifically negotiated license shall be marked as follows:

SPECIAL LICENSE RIGHTS

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these data or software are restricted by Contract Number [Insert contract number] ____, License Number [Insert license identifier] _____. Any reproduction of technical data, computer software, or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(ii) For purposes of this clause, special licenses do not include government purpose license rights acquired under a prior contract (see paragraph (c)(5) of this clause).

(7) *Preexisting data or software markings.* If the terms of a prior contract or license permitted the Contractor to restrict the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software deliverable under this contract, and those restrictions are still applicable, the Contractor may mark such data or software with the appropriate restrictive legend for which the data or software qualified under the prior contract or license. The Contractor shall follow the marking procedures in paragraph (g)(1) of this clause.

(h) *Contractor procedures and records.* Throughout performance of this contract, the Contractor and its subcontractors or suppliers that will deliver technical data or computer software with other than unlimited rights, shall--

(1) Have, maintain, and follow written procedures sufficient to assure that restrictive markings are used only when authorized by the terms of this clause; and

(2) Maintain records sufficient to justify the validity of any restrictive markings on technical data or computer software delivered under this contract.

(i) *Removal of unjustified and nonconforming markings--*(1) *Unjustified technical data markings.* The rights and obligations of the parties regarding the validation of restrictive markings on technical data or computer software delivered or to be delivered under this contract are contained in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. Notwithstanding any provision of this contract concerning inspection and acceptance, the Government may ignore or, at the Contractor's expense, correct or strike a marking if, in accordance with the procedures in the Validation of Asserted Restrictions clause of this contract, a restrictive marking is determined to be unjustified.

(2) *Nonconforming technical data or computer software markings.* A nonconforming marking is a marking placed on technical data or computer software delivered or otherwise furnished to the Government under this contract that is not in the format authorized by this contract. Correction of nonconforming markings is not subject to the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. If the Contracting Officer notifies the Contractor of a nonconforming marking and the Contractor fails to remove or correct such marking within 60 days, the Government may ignore or, at the Contractor's expense, remove or correct any nonconforming marking.

(j) *Relation to patents.* Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government under any patent.

(k) *Limitation on charges for rights in technical data, computer software, or computer software documentation.* (1) The Contractor shall not charge to this contract any cost, including, but not limited to, license fees, royalties, or similar charges, for rights in technical data, computer software, or computer software documentation the Contractor must deliver under this contract when--

(i) The Government has acquired, by any means, the same or greater rights in the data or software; or

(ii) The data or software are available to the public without restrictions.

(2) The limitation in paragraph (k)(1) of this clause--

(i) Includes costs charged by a subcontractor or supplier, at any tier, or costs incurred by the Contractor to acquire rights in subcontractor or supplier technical data, computer software, or computer software documentation, if the subcontractor or supplier has been paid for such rights under any other Government contract or under a license conveying the rights to the Government; and

(ii) Does not include the reasonable costs of reproducing, handling, or mailing the documents or other media in which the technical data, computer software, or computer software documentation will be delivered.

(l) *Applicability to subcontractors or suppliers.* (1) The Contractor shall ensure that the rights afforded its subcontractors and suppliers under 10 U.S.C. 3771-3775, 10 U.S.C. 3781-3786, and the identification, assertion, and delivery processes of paragraph (f) of this clause are recognized and protected.

(2)(i) Except as provided in paragraph (1)(2)(ii) of this clause, the Contractor shall include this clause in any subcontract or contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This requirement applies to technical data or software related to other than commercial products or commercial services, or related to commercial products or commercial services developed in any part with Government funds. The Contractor shall also require its subcontractors and suppliers to include this clause, without alteration except to identify the parties, in any contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This clause will govern the technical data related to an other than commercial product or service or to any portion of a commercial product or commercial service that was developed in any part at Government expense, and the clause at 252.227-7990 will govern the technical data related to any portion of a commercial item that was developed exclusively at private expense. No other clause shall be used to expand or reduce the Government's, the Contractor's, or a higher-tier subcontractor's or supplier's rights in a subcontractor's or supplier's technical data, computer software, or computer software documentation.

(ii) The Contractor shall use the clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, to govern technical data, computer software, or computer software documentation that is SBIR/STTR data.

(3) Technical data, computer software, or computer software documentation a subcontractor or supplier must deliver shall normally be delivered to the next higher-tier contractor, subcontractor, or supplier. However, when there is a requirement in the prime contract for data which may be submitted with other than unlimited rights by a subcontractor or supplier, then said subcontractor or supplier may fulfill its requirement by submitting such data or software directly to the Government, rather than through a higher-tier contractor, subcontractor, or supplier.

(4) The Contractor and higher-tier subcontractors or suppliers shall not use the award of a contract as economic leverage to obtain rights in technical data, computer software, or computer software documentation from their subcontractors or suppliers.

(5) In no event shall the Contractor use its obligation to recognize and protect subcontractor or supplier rights in technical data, computer software, or computer software documentation as an excuse for failing to satisfy its contractual obligations to the Government.

(End of clause)

Section J - List of Attachments

Exhibits:

Id	Exhibit Name	Exhibit Description	Reference Identifier	Date	Line Item
A	CDRLs_26RK065	Cost/Schedule Status Report (CDRL)		12 Mar 2026	

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	ADC SOW Rev Basic dated Jan 2018	Data item submittals under CDRLS, not elsewhere listed		12 Mar 2026
02	CADPAD Item Marking Instruction Ver 1.6	Data item submittals under CDRLS, not elsewhere listed		12 Mar 2026
03	ADC_Master Rev 16	Data item submittals under CDRLS, not elsewhere listed		12 Mar 2026
04	RFV Form DD1694 Example Only dated 6_5_25	Data item submittals under CDRLS, not elsewhere listed		12 Mar 2026
05	GFP_26RK065	Request for Use of Government Property		12 Mar 2026

Section K - Representations, Certification, & Other Statements

52.219-1 Small Business Program Representations (NOV 25)

(a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in [13 CFR 126.200](#), is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) ([13 CFR 126.103](#)).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 325920.

(2) The small business size standard is 750.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that--

(i) it is, is not a small business concern; or

(ii) It is, is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it is, is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(5) *SDVOSB joint venture eligible under the SDVOSB Program.* [*Complete only if the offeror is certified as a SDVOSB concern*]. The offeror represents as part of its offer that it is, is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that it is, is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be--

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications.	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
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252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022	
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016	
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022	
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023	
252.225-7966	Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1)	Mar 2024	Deviation 2024-O0006 Mar 2024
252.227-7028	Technical Data or Computer Software Previously Delivered to the Government.	Jun 1995	

FAR Clauses Incorporated by Full Text

52.203-2 Certificate of Independent Price Determination. (Apr 1985)

CERTIFICATE OF INDEPENDENT PRICE DETERMINATION (APR 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision ____ [insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. (Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification.

(Feb 2026)

VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification.* [Offeror shall check either (1) or (2).]

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.215-6 Place of Performance.

(Feb 2026)

PLACE OF PERFORMANCE (FEB 2026)

(a) The offeror or respondent, in the performance of any contract resulting from this request for proposals, ☐ intends, ☐ does not intend [check applicable block] to use one or more plants or facilities located at a different address from the address of the offeror or respondent as indicated in this proposal or response to request for information.

(b) If the offeror or respondent checks "intends" in paragraph (a) of this provision, it shall insert in the following spaces the required information:

Place of Performance (Street Address, City, State, County, ZIP Code)	Name and Address of Owner and Operator of the Plant or Facility if Other than Offeror or Respondent

--	--

(End of provision)

52.225-18 Place of Manufacture.

(Aug 2018)

PLACE OF MANUFACTURE (AUG 2018)

(a) *Definitions.* As used in this provision-

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) FPSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

- (1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
- (2) ☐ Outside the United States.

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation.

(Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.

(May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES- REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.204-7998 **Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043)** (Feb 2026) **Alternate A Deviation 2026-O0043** (Feb 2026)

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [*Contracting Officer check as appropriate.*]

X (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

X (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

[] (iii) 252.225-7020, Trade Agreements Certificate.

[] Use with Alternate I.

X (iv) 252.225-7031, Secondary Arab Boycott of Israel.

[] (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

[] Use with Alternate I.

[] Use with Alternate II.

[] Use with Alternate III.

[] Use with Alternate IV.

[] Use with Alternate V.

[] (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

[] (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change
==	==	==	==
==	==	==	==
==	==	==	==

==	==	==	==
==	==	==	==

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.225-7010 Commercial Derivative Military Article-Specialty Metals Compliance Certificate. (Jul 2009)

COMMERCIAL DERIVATIVE MILITARY ARTICLE-SPECIALTY METALS COMPLIANCE CERTIFICATE (JUL 2009)

(a) *Definitions.* "Commercial derivative military article," "commercially available off-the-shelf item," "produce," "required form," and "specialty metal," as used in this provision, have the meanings given in the clause of this solicitation entitled "Restriction on Acquisition of Certain Articles Containing Specialty Metals" (DFARS 252.225-7009).

(b) The offeror shall list in this paragraph any commercial derivative military articles it intends to deliver under any contract resulting from this solicitation using the alternative compliance for commercial derivative military articles, as specified in paragraph (d) of the clause of this solicitation entitled "Restriction on Acquisition of Certain Articles Containing Specialty Metals" (DFARS 252.225-7009). The offeror's designation of an item as a "commercial derivative military article" will be subject to Government review and approval.

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(c) If the offeror has listed any commercial derivative military articles in paragraph (b) of this provision, the offeror certifies that, if awarded a contract as a result of this solicitation, and if the Government approves the designation of the listed item(s) as commercial derivative military articles, the offeror and its subcontractor(s) will demonstrate that individually or collectively they have entered into a contractual agreement or agreements to purchase an amount of domestically melted or produced specialty metal in the required form, for use during the period of contract performance in the production of each commercial derivative military article and the related commercial article, that is not less than the Contractor's good faith estimate of the greater of-

(1) An amount equivalent to 120 percent of the amount of specialty metal that is required to carry out the production of the commercial derivative military article (including the work performed under each subcontract); or

(2) An amount equivalent to 50 percent of the amount of specialty metal that will be purchased by the Contractor and its subcontractors for use during such period in the production of the commercial derivative military article and the related commercial article.

(d) For the purposes of this provision, the amount of specialty metal that is required to carry out the production of the commercial derivative military article includes specialty metal contained in any item, including commercially available off-the-shelf items, incorporated into such commercial derivative military articles.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

SECTION L.1 Proposal Submission: Instructions, Conditions, and Notices to Offerors

Introduction: This section contains general proposal submission instructions as well as specific proposal requirements for procurement of the item(s) listed in section B of the schedule.

- a) The Government intends to award one firm fixed-price contract to the offeror representing the best value to the Government, considering both non-price and price factors.
- b) Offerors are responsible for confirming the Contracting Officer and/or Contract Specialist received their proposal.

The complete proposal, as described in section L.2, and all subsequent amendments shall be submitted electronically no later than the due date and time specified in the solicitation. The Government will not consider proposals submitted by mail or delivered by hand. Offerors shall submit an electronic proposal to the email address listed in section A of the solicitation in one of the following manners:

- a) Electronic mail: Each proposal submitted via e-mail should not exceed 10MB. Offerors may send attachments in separate emails to remain within the size limit. Offerors may request acknowledgement to verify receipt of their proposals.

The Government may award without discussion. As a result, the offeror should submit a proposal that presents its best offer, subject to all terms and conditions.

Offerors should submit all questions no later than one (1) week prior to the initial solicitation closing date. The Government is not required to answer questions received after this date. Unless otherwise stated in an amendment, extensions to the solicitation due date will not extend the date for questions from potential offerors.

SECTION L.2 Proposal Instructions

Offerors shall submit their proposals in accordance with instructions outlined here. Offerors should thoroughly review sections L & M of the solicitation prior to submitting a proposal. Proposals shall be specific, complete, unambiguous, and address each designated factor using only the English language.

The proposal shall communicate the offeror's ability to perform the requirement in a clear and convincing manner. The contractor should not simply restate or repeat the solicitation requirements in the proposal as doing so would add no value for evaluation of the stated criteria. Proposals that do not contain information that sections L and M require risk rejection. The Government intends to award a single contract under this RFP. The Government also intends to award without discussion, but reserves the right to contact offerors for clarification, or conduct discussions if the Contracting Officer determines discussions necessary in accordance with FAR Part 15.306(a).

The proposal shall consist of an introductory volume and the following proposal volumes:

L.2.1 Proposal Volumes: One (1) electronic copy of each volume submitted separately as set forth below:

- Volume 1: Introductory Volume
- Volume 2: Past Performance Volume
- Volume 3: Small Business Participation Volume
- Volume 4: Price Volume

Address each evaluation factor in a separate volume as specified above. Offerors shall provide electronic copies in Microsoft Word, Microsoft Excel or Portable Document Format (PDF) format. The Government considers quality of information more important than quantity with attention to clarity, brevity, and logical organization. Passwords must be provided for each password-protected document as the evaluation will not be delayed to obtain passwords.

Separate from the proposal volumes, offerors who are a large business must also submit a small business subcontracting plan, unless an exception applies, or a waiver is granted. Subcontracting plans are assessed for acceptability and may be negotiated if necessary to achieve acceptability.

Alternate proposals are authorized for the areas listed below. Any exception to this solicitation, where an alternate proposal is not authorized may render an offer non-compliant.

- 1) Minor Variances - See Section C for further information.
- 2) Minor Engineering Change Proposals (ECPs) - See Section C for further information.
- 3) Solicitation amendments may also allow other reasons for alternate proposals.

SECTION L.3 Proposal Organization Instructions

Offeror(s) shall organize all information intended for the Government to consider, specific to each volume, within its designated volume. Failure to include requested information in the applicable volume could result in non-consideration. Offerors are responsible for including sufficient details, in a concise manner, to permit a complete and accurate evaluation of each proposal volume. Proposals that do not contain the information requested risk the Government's rating of non-compliant.

Volume 1: Introductory Volume: offerors' proposals shall remain valid for a minimum of 120 days after the close of the RFP and contain the following:

- a) One signed copy of the solicitation (Standard Form 33) to include a completed section K, Representation and Certifications, and acknowledgement of all amendments.

Volume 2: Past Performance Factor: The Government considers past performance a predictor of future contract performance. The Government bases its degree of confidence the offeror will complete the requirements in accordance with the contract terms on the offeror's demonstrated record of recent, relevant performance. Each offeror shall submit its past performance information in accordance with the following format:

Contract Past Performance Examples: Offerors may submit up to four (4) contract examples with its initial proposal representing recent, relevant performance under Government and/or commercial contracts. Offerors should limit examples to those involving its performance as a prime or first tier subcontractor only. The Government is not required to interview any points of contact identified by offerors. The Government reserves the right to use data provided in the Offeror's proposal and data obtained from any other sources of information to evaluate past performance including, but not limited to, the Contractor Performance Assessment Reporting System (CPARS) or the System for Award Management (SAM). The Government does not assume the duty to search for data to cure any problems it finds in the information provided by the offeror. The burden of providing thorough and complete past performance information remains with the offeror.

Recent contracts are those that produced deliverables under prime contracts, task orders, delivery orders, subcontracts, within three (3) years prior to issuance of this solicitation, as well as contracts that continue today. The Government reserves the right to consider any significant past performance after the solicitation closing date and prior to award.

Relevant means performance that demonstrates the offeror's successful performance on current and/or prior efforts involving the same or similar manufacturing and quality assurance processes. Other factors of potential consideration to determine relevance include the degree to which the contracts are comparable with regard to the complexity of the manufacturing processes, size of the production quantities or total dollar value to the solicited effort. In-house performance holds greater relevance and therefore, a greater predictor of success than outsourcing.

The Government determines which information is relevant for evaluation purposes. Offerors are encouraged to highlight those efforts it feels are most similar in scope and magnitude of effort and complexities to the requirements of this solicitation. The past performance information submitted in this volume should include contract descriptions with at least the following information:

1. Contract number, award date, total contract dollar value.
2. Item description, nomenclature, national stock number (NSN), part number, quantity, and period of performance.
3. Name and reference point of contact at the Government or commercial entity for where the contract performed.

The Past Performance Factor consists of three Sub-factors:

Sub-factor 1 - Quality: Offeror shall provide evidence of a Quality Management System (QMS) that has minimized defects and implemented procedures for identification, control, corrections, and/or resolution of deficiencies identified in components, assemblies, and the end items.

Sub-factor 2 - Timeliness of Delivery: Offeror shall provide evidence of how it met interim milestones, controlled supplier performance, provided reliable delivery, was responsive to technical direction, and completed work on time.

Sub-factor 3 - Small Business Utilization: Offeror shall provide evidence of its previous efforts to comply with FAR Part 52.219-8 Utilization of Small Business Concerns and FAR Part 52.219-9 Small Business Subcontracting Plan.

Volume 3: Small Business Participation Commitment Factor: All offerors shall submit a small business participation commitment document and substantiating documentation to demonstrate how the offeror will meet these requirements. As required by DFARS Part 215.304, small business participation is an evaluation factor in this acquisition. Small business participation is evaluated in order to support the Government policy that small businesses be provided maximum practicable opportunities in Government acquisitions.

This section applies to all offerors (small businesses and other than small businesses) (including comprehensive subcontracting plan program participants and commercial subcontracting plan holders). This is NOT an assessment of a small business subcontracting plan in accordance with FAR Part 19.7. At a minimum, the following information shall be included in the small business participation commitment document:

- Goals for each socioeconomic category shown in the chart below, expressed as dollars and percentages of total contract value for small business concerns and each subcategory of small business.
- The small business concerns as defined in FAR Part 19 that are to be used in the proposed approach to satisfying the requirements of this solicitation and the nature of the commitment with the small business concern (i.e., letter of commitment, joint ventures, mentor protegee agreements, others).

Offerors may use the table/format below in proposing this volume or use their own format so long as the proposed volume meets the minimum requirements stated above.

Business Category		Dollar Value	% of Total Contract Value	
Total Proposed Contract Value - Prime Offer		\$ _____	% _____	
Total Small Business		\$ _____	% _____	
Small Disadvantaged Business		\$ _____	% _____	
Woman-Owned Small Business		\$ _____	% _____	
HUBZone Small Business		\$ _____	% _____	
Veteran-Owned Small Business		\$ _____	% _____	
Service-Disabled Veteran-Owned Small Business		\$ _____	% _____	

Company Name	Small Business Category(ies) (SB, WOSB, SDV, HUBZone, VOSB, SDVOSB)	Product(s)/Services(s) to be Provided, including type & variety of work	NAICS	Nature of Commitment

While this strategy is separate from the small business subcontracting plan, it shall be consistent with the small business subcontracting plan, if such a plan is required.

Small Business Subcontracting Plan - Companies that are other than small business concerns shall provide a small business subcontracting plan conforming to the requirements of FAR Clause 52.219-9, small business subcontracting plan, which is separate from the small business participation commitment factor. Subcontracting plans shall reflect and be consistent with the commitments offered in the small business participation strategy.

Volume 4: Price Factor: Proposed unit prices are limited to two decimal places. Offeror(s) shall provide a completed copy of section B with unit prices and total subline item pricing for both a contract requirement with First Article Testing (FAT) deliverable units and without FAT deliverable units. Failure to do so may cause the Government to reject the offer.

The awarded contract may require FAT:

- a. The Government is responsible for FAT under this contract. The Contracting Officer may waive this requirement if the offeror shipped and the Government accepted identical or similar supplies in performance of a prior contract. The Government considers the cost to perform testing during offer evaluations. The Government adds test cost to each offer that requires first article testing. The estimated FAT cost the Government uses for evaluation purposes is \$302,500.00.

b. Offerors may identify these identical or similar supplies by the contract number, agency, NSN, contract award date, and contract delivery date to support a FAT waiver.

CONTRACT AGENCY	NSN	CONTRACT NUMBER	AWARD DATE	DELIVERY DATE

If the Government receives only one offer, the offeror will comply with DFARS Part 252.215-7008.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration.	Feb 2026		
52.214-34	Submission of Offers in the English Language.	Apr 1991		
52.214-35	Submission of Offers in U.S. Currency.	Apr 1991		
52.215-1	Instructions to Offerors-Competitive Acquisition.	Nov 2021		
52.233-2	Service of Protest.	Feb 2026		

FAR Clauses Incorporated by Full Text

52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)

Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use (Apr 2008)

Any contract awarded as a result of this solicitation will be [] DX rated order; [X] DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of provision)

52.216-1 Type of Contract. (Feb 2026)

Type of Contract (Feb 2026)

The Government contemplates award of a Firm Fixed Price contract resulting from this solicitation.

(End of provision)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far> or DFARS Clauses: <http://www.acq.osd.mil/dpap/dfars/dfarspgi/current/>

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7024 Notice on the Use of the Supplier Performance Risk System.

(Mar 2023)

NOTICE ON THE USE OF THE SUPPLIER PERFORMANCE RISK SYSTEM (MAR 2023)

(a) *Definitions.* As used in this provision-

"Item risk" means the probability that a product, based on intended use, will introduce performance risk resulting in safety issues, mission degradation, or monetary loss.

"Price risk" means a measure of whether a proposed price for a product or service is consistent with historical prices paid for that item or service.

"Supplier risk" means the probability that an award may subject the procurement to the risk of unsuccessful performance or to supply chain risk (see Defense Federal Acquisition Regulation Supplement 239.7301).

(b) The Supplier Performance Risk System (SPRS), available at <https://piee.eb.mil/>, will be used in the evaluation of the Quoter or Offeror's performance. SPRS retrieves item, price, quality, delivery, and contractor information on contracts from Government reporting systems in order to develop risk assessments.

(c) The Contracting Officer will consider SPRS risk assessments during the evaluation of quotations or offers received in response to this solicitation as follows:

- (1) Item risk will be considered to determine whether the procurement represents a high performance risk to the Government.

(2) Price risk will be considered in determining if a proposed price is consistent with historical prices paid for a product or a service or otherwise creates a risk to the Government.

(3) Supplier risk, including but not limited to quality and delivery, will be considered to assess the risk of unsuccessful performance and supply chain risk.

(d) SPRS risk assessments are generated daily. Quoters or Offerors are able to access their risk assessments by following the access instructions in the SPRS user's guide available at <https://www.sprs.csd.disa.mil/reference.htm>. Quoters and Offerors are granted access to SPRS for their own risk assessment classifications only. SPRS reporting procedures and risk assessment methodology are detailed in the SPRS user's guide. The method to challenge a rating generated by SPRS is also provided in the user's guide. SPRS evaluation criteria are available at https://www.sprs.csd.disa.mil/pdf/SPRS_DataEvaluationCriteria.pdf.

(e) The Contracting Officer may consider any other available and relevant information when evaluating a quotation or an offer.

(End of provision)

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: CMMC Level 2 (C3PAO). This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable informal cost data IAW FAR 15.403-3(a)(1).

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7010 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (May 2024)

REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA-BASIC (MAY 2024)

(a) *Definitions*. As used in this provision-

"Market prices" means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

"Non-Government sales" means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

"Relevant sales data" means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

"Sufficient non-Government sales" means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by Federal Acquisition Regulation (FAR) 15.404-1(b)(2)(ii)(B).

"Uncertified cost data" means the subset of "data other than certified cost or pricing data" (see FAR 2.101) that relates to cost.

(b) *Exceptions from certified cost or pricing data*.

(1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) *Exception for prices set by law or regulation - Identification of the law or regulation establishing the prices offered*. If the prices are controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) *Commercial product or commercial service exception*. For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for determining commerciality and evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include-

(A) For products or services previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For subsystems of a major weapon system and components and spare parts of a major weapon system or subsystem of a major weapon system that have not previously been determined to be commercial-

(1) The comparable commercial product the Offeror sells to the general public or nongovernmental entities;

(2) A comparison between the physical characteristics and functionality of the comparable commercial product and the subsystem, component, or spare part, including-

(i) For products under paragraph (3)(i) of the "commercial product" definition at FAR 2.101, a description of the modification and documentation to support that the modification is customarily available in the marketplace; or

(ii) For products under paragraph (3)(ii) of the "commercial product" definition at FAR 2.101, a detailed description of the modification and detailed technical data to demonstrate that the modification is minor (e.g., information on production processes and material differences); and

(3) The national stock number (NSN) for the comparable commercial product, if one is assigned, and the NSN for the subsystem, component, or spare part, if one is assigned; or

(4) If the Offeror does not sell a comparable commercial product to the general public or nongovernmental entities for purposes other than government purposes, the Offeror shall-

(i) Notify the Contracting Officer in writing that it does not sell such a comparable product; and

(ii) Provide the Contracting Officer with a comparison of the physical characteristics and functionality of the most comparable commercial product in the commercial market.

(C) For items priced based on a catalog-

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(D) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit DoD to verify the accuracy of the description;

(E) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(F) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) *Requirements for certified cost or pricing data.* If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The Offeror shall prepare and submit certified cost or pricing data and supporting attachments in accordance with the instructions contained in Table 15-2 of FAR 15.408, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-2 are incorporated as a mandatory format to be used in any resultant contract, unless the Contracting Officer and the Offeror agree to a different format and change this provision to use Alternate I.

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-1(c)(1)(ii).

(d) *Requirements for data other than certified cost or pricing data.*

(1) Data other than certified cost or pricing data submitted in accordance with this provision shall include the minimum information necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in Defense Federal Acquisition Regulation Supplement (DFARS) 215.402(a)(i), 215.404-1(b), and 234.7002(e).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) If the Offeror redacts data that identifies the customer (see DFARS 234.7002(e)(2)), then the Offeror shall include, for each sale, the following signed statement with the data submitted:

"By submission of this data, the Offeror [Offeror insert company name] certifies that the customer was [Offeror insert one or more of the following as applicable: a government customer; a commercial customer purchasing the same or similar product for governmental purposes (e.g., Federal, state, local, or foreign government); or a commercial customer purchasing the same or similar product for a commercial, mixed, or unknown purpose]."

(4) Within 10 days of a written request from the Contracting Officer for additional information to permit an adequate evaluation of the proposed price in accordance with FAR 15.403-3 or DFARS 234.7002(e), the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(5) *Subcontract price evaluation.*

(i) Offerors shall obtain from subcontractors the minimum information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost data may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary-

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) *Subcontracts*. The Offeror shall insert the substance of this provision, including this paragraph (e), in subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of-

(1) Paragraphs (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4; and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7012 Requirements for Submission of Proposals via Electronic Media.

(Jan 2018)

REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media: Excel format with formulas intact. [Insert media format, e.g., electronic spreadsheet format, electronic mail, etc.]

(End of provision)

252.215-7013 Supplies and Services Provided by Nontraditional Defense Contractors.

(Jan 2023)

SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)

Offerors are advised that in accordance with 10 U.S.C. 3457, supplies and services provided by a nontraditional defense contractor, as defined in DFARS 202.101, may be treated as commercial products or commercial services. The decision to apply commercial product or commercial service procedures to the procurement of supplies and services from a nontraditional defense contractor does not require a commercial product or commercial service determination and does not mean the supplies or services are commercial.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

WSSTERMLZ05 REVIEW OF AGENCY PROTESTS

(Feb 2013)

(Applicable when FAR clause 52.233-2 and/or 52.233-3 are included)

In accordance with FAR Subpart 33.103(d)(4), interested parties may request an independent review of their protest at a level above the contracting officer. The request for an independent review may be made in lieu of a protest to the contracting officer, or as an appeal of a contracting officer decision on a protest. If an agency appellate review of the contracting officer's decision on a protest is requested, it will not extend GAO's timeliness requirements. Any subsequent protest to the GAO must be filed within 10 days of knowledge of the initial adverse agency action.

The individual who will conduct the independent review is the Chief of the Contracting Office (CCO). Interested parties requesting to have an independent review of a protest or to appeal a contracting officer protest decision shall address their correspondence to:

For solicitations or contracts issued by DODAAC N00104--

Independent Protest Review Official

NAVSUP WSS Code N7

Building 410, South End, Bay A30

5450 Carlisle Pike, PO Box 2020

Mechanicsburg, PA 17055-0788

For solicitations or contracts issued by DODAAC N00383--

Independent Protest Review Official

NAVSUP WSS Code N7

Building 1, Rm. 2209

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Section M - Evaluation Factors for Award

SECTION M.1 - Basis for Award: Evaluation Factors for Award (Section M)

The Government will perform an initial assessment of the offerors' proposals against the submittal requirements of section L. Failure to submit the required documentation in the format specified in Section L of this solicitation may render the offeror's proposal unevaluable and the proposal will be eliminated from the competition without further consideration. The Government will evaluate proposals submitted in accordance with this section and will make a determination considering the following factors: past performance, small business, and price. Based upon competition among offerors, the Government will award the contract to the offeror that demonstrates the best value to the Government.

The Government intends to award a single contract to the offeror that communicates the best value in its proposal. The tradeoff determination seeks to identify each proposal's relative strengths, weaknesses, and risks. This means the Government may award the contract to an offeror that does not offer the lowest price. The selection decision will consider an evaluation of the factors indicated above using an adjectival rating system that grades an offeror's non-price factors. Price will be evaluated for reasonableness but not adjectivally rated.

The Government will evaluate each proposal strictly in accordance with section M. Selection of the successful offeror follows an assessment of each proposal against the solicitation requirements and the cited evaluation criteria. Section L of the solicitation contains criteria to review and assess information provided by the offerors in response to information sought. The Government intends to award without discussions but reserves the right to hold exchanges with industry, which may include clarifications, communications, and discussions as defined in FAR Part 15.306.

Responsibility: Pursuant to FAR Part 9.103, the Contracting Officer will award only to a contractor deemed a responsible contractor. Separate from the best value source selection criteria, each Offeror must be able to demonstrate it meets the standards of responsibility set forth in FAR Part 9.104-1.

- a) The Government reserves the right to conduct a pre-award survey on any offerors considered for award, to assist in the Contracting Officers determination of contractor responsibility. The Contracting Officer may also either make a responsibility determination without requesting any information from an offeror or require the offeror provide information to substantiate that it satisfies the general responsibility standards of FAR Part 9.104-1. The Contracting Officer considers an offeror's ability to respond to request(s) for information promptly as an indication of the offeror's level of responsibility.
- b) Nothing in this provision limits the Contracting Officer's discretion to rely on information available from other sources (e.g., past performance databases, discussions with other entities familiar with the offeror) or to use any other technique described in FAR Part 9.1 when determining whether the offeror satisfies the FAR Part 9.104-1 general responsibility standards.

Tradeoff Evaluation Standard Definitions

Term	Definition
Risk	The potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.
Strength	An aspect of a proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantages to the Government during contract performance.
Weakness	A flaw in the proposal that increases the risk of unsuccessful contract performance.
Deficiency	A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

SECTION M.2 - Order of Importance

All evaluation factors other than price, when combined, are significantly more important than price. Within the past performance factor, all subfactors are approximately equal. Past performance is significantly more important than small business participation.

The Government reserves the right to make the award to an offeror other than the offeror that submits the lowest overall evaluated price, using a best value trade-off analysis method of procurement. Offerors must receive a rating of at least limited confidence in past performance to be eligible for award.

Evaluation Factors and Sub-factors:

The Government intends to award the responsible Offeror that proposes the best value to the Government, based on the evaluation of these factors and sub-factors:

- Past Performance Factor
 - o Sub-Factor 1: Quality
 - o Sub-Factor 2: Timeliness of Delivery
 - o Sub-Factor 3: Small Business Utilization
- Small Business Participation Factor
- Price Factor

The Government will find offerors that do not propose on all the above factors non-compliant and may remove them from the competitive range and /or not rate the proposal. Offerors will submit in accordance with Section L.

SECTION M.3 - Evaluation Factors

The purpose of the proposal evaluation is to ensure competitive proposals are examined impartially and comprehensively. The evaluators may verify any statements and representations made in the offeror's proposal. Each proposal will be evaluated in accordance with the criteria set forth below.

Volume 1: Introductory Volume: Offerors' proposals shall remain valid for a minimum of 120 days after the close of the RFP and be in compliance with the submission instructions provided in section L.

Volume 2: Past Performance Factor Evaluation: The Government considers past performance information a predictor of future contract performance. The Government bases its degree of confidence it has the Offeror will successfully complete the requirements in accordance with the contract terms on the Offeror's demonstrated record of recent and relevant performance. This evaluation is separate and distinct from the Contracting Officer's responsibility determination. Assessment of the offeror's past performance translates a means of evaluating the relative capability of the offeror(s) to achieve the RFP requirements.

The Government may consider the currency, degree of relevance, source and context of the past performance information it evaluates as well as general trends in performance, and demonstrated corrective actions. A significant achievement, problem, problem resolution, or lack of relevant data in any element can become an important consideration in the assessment process. A negative finding in any element may result in a lower past performance confidence assessment rating.

Absent any recent and relevant past performance history, the Government assigns an unknown confidence (neutral) past performance rating to the offeror. Without past performance information, the Government does not consider the offeror's past performance favorably or unfavorably.

The Government may use information obtained from other sources to conduct past performance evaluation, or it may use information with regard to other contracts performed by the offeror of which it has knowledge, whether or not those contracts are disclosed to the Government by the offeror.

The Government will rate each offeror on its recent and relevant contractual information. The definitions for recent and relevant are provided in section L of the solicitation. The Government will assign recent and relevant ratings in accordance with the below tables.

Recent Ratings:

Determination of recent contract examples in regards to the past performance factor information will be determined as follows:

Adjectival Rating	Description
Recent	Recent contracts are those that produced deliverables under prime contracts, task orders, delivery orders, subcontracts, within three (3) years prior to issuance of this solicitation, as well as contracts that continue today. The Government reserves the right to consider any significant past performance after the solicitation closing date and prior to award.
Not Recent	Not Recent contracts are those that have not produced deliverables under prime contracts, task orders, delivery orders, subcontracts, within three (3) years prior to issuance of this solicitation.

Only information determined to be recent by meeting the standard for recent as defined in section L and in the chart above, will be further considered in the past performance evaluation.

Relevancy Ratings:

Relevancy of the past performance information will be determined as follows:

Adjectival Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Only information determined to be very relevant, relevant, or somewhat relevant and meeting the standard for recent as defined in section L will be further considered in the past performance evaluation.

Performance Confidence Assessment:

The Government will assess how well the offeror performed on recent, relevant contracting efforts. The Government may use information presented in the offeror's past performance proposal volume in addition to information independently obtained from outside sources, to include assessment reports, databases, interviews, and other sources. Sub-factor evaluation uses an overall past performance factor rating assigned from the table below based on the individual sub-factor ratings and findings. If any past performance sub-factor receives a no confidence rating, the overall factor rating will be no confidence.

Adjectival Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

The Government may use additional, external sources to evaluate past performance. These sources include, but are not limited to, CPARS, SAM.gov, or other databases; interviews with Program Managers, Contracting Officers, and the Defense Contract Management Agency. The Government also

has the right to consider information regarding an offeror's past performance up to date of award. It is the responsibility of the offeror to provide complete past performance information and thorough explanations as required by section L. The Government is not obligated to make another request for the required information.

Merely having problems does not automatically equate to a no confidence rating, since problems encountered may have been on a more complex program, or an Offeror may have subsequently demonstrated the ability to overcome the problems. The Offeror is required to demonstrate management actions employed in overcoming any problems and the effects of those actions, in terms of improvements achieved or problems rectified, clearly.

The past performance evaluation consists of three sub-factors:

Sub-factor 1 - Quality: The offeror demonstrates evidence of a QMS that has effectively minimized defects and implemented procedures for identification, control, corrections, and/or resolution of deficiencies identified in components, assemblies, and the end items for recent and relevant efforts.

Sub-factor 2 - Timeliness of Delivery: The offeror provides clear evidence of how it met interim milestones, controlled supplier performance, provided reliable delivery, was responsive to technical direction, and completed work on time for recent and relevant efforts.

Sub-Factor 3 - Small Business Utilization: The offeror provides evidence of how its efforts to comply with FAR Part 52.219-8 Utilization of Small Business Concerns and FAR Part 52.219-9 Small Business Subcontracting Plan have enhanced opportunities for small business and enabled the offeror to meet or exceed their small business subcontracting goals. Evaluation may include the following: reporting of small business performance in the CPARS, achievement of subcontracting goals and timely Electronic Subcontracting Reporting System (eSRS) reporting.

Volume 3: Small Business Participation Commitment Factor Evaluation: As required by DFARS Part 215.304, small business participation is an evaluation factor in this acquisition. The small business participation factor contains no subfactors.

The Government will evaluate the degree to which the offeror's small business participation plan demonstrates the offeror's commitment to maximizing opportunities for small businesses. Small businesses can claim their own self-performance as part of the small business percentage. Each offeror's proposal shall include the information requested in section L. The Government will assess the offeror's planned approach for subcontracting with small business concerns. The Government is seeking to determine whether the offeror has demonstrated a good faith effort to use the various small business concerns in the various socioeconomic sectors for the work that it does not intend to perform as the prime contractor. The Government will evaluate the following to determine the offerors approach and commitment to maximizing opportunities for small business:

- i. Extent of participation of small business firms in terms of total contract value.
- ii. Extent to which small business firms as defined in FAR Part 19, are specifically identified in proposals.
- iii. Extent to which offerors demonstrate commitment to use such firms
- iv. Identification of the complexity and variety of work to be performed by small business firms

The Government will develop one overall small business participation rating for the offeror based on the evaluation criteria described above and using the small business participation table provided below:

Small Business Participation Rating Table		
Color Rating	Adjectival Rating	Description
Blue	Outstanding	Proposal indicates an exceptional approach and commitment to maximizing small business participation.
Purple	Good	Proposal indicates a thorough approach and commitment to maximizing small business participation.
Green	Acceptable	Proposal indicates an adequate approach and commitment to maximizing small business participation.
Yellow	Marginal	Proposal has not demonstrated an adequate and commitment to maximizing small business participation.

Red	Unacceptable	Proposal does not demonstrate a commitment to maximizing small business participation
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Volume 4: Price Factor Evaluation

The Government will evaluate the price of all proposals but will not use an adjectival rating to rate offerors. The FAR requires the Government award contracts at fair and reasonable prices.

- Evaluation of price will be performed using one or more of the price analysis techniques in FAR Part 15.404-1(b). Through these techniques the Government will determine whether prices are reasonable, complete and balanced.
- All offers with separately priced line items or subline items shall be analyzed to determine if the prices are unbalanced (FAR Part 15.404-1(g)). Unbalanced pricing exists where the prices of one or more line items are significantly overstated or understated, despite an acceptable total evaluated price. Offers may be rejected if the PCO determines the lack of balance poses an unacceptable risk to the Government.
- In accordance with DFARS Clause 252.215-7008, the Government reserves the right to require Certified Cost, Certified Pricing Data, or data other than certified cost and pricing data in the event this solicitation garners only one offer.
 - a. The Government is responsible for FAT under this contract. Offerors are required, pursuant to Section L, to provide a completed copy of section B with unit prices and total subline item pricing for both a contract requirement with First Article Testing (FAT) deliverable units and without FAT deliverable units. The Contracting Officer may waive the FAT requirement if the offeror shipped and the Government accepted identical or similar supplies in performance of a prior contract. If the contracting officer waives the FAT requirement, the Offeror's unit price used for evaluation purposes shall be the Offeror's Section B unit pricing without FAT deliverable units. If the contracting officer does not waive FAT, the Offeror's unit price used for evaluation purposes shall be the Offeror's Section B unit pricing with FAT deliverable units.
 - b. The Government will evaluate offers according to this formula: unit price x quantity + FAT, if the Government requires FAT for an eligible offeror. This does not affect the Government's ability to require FAT during contract performance.

SECTION M.4 - Evaluation Process

This source selection will be conducted in accordance with the FAR, DFARS, NMCARS, internal NAVSUP guidance and procedures as well as any other applicable regulation or policy. These regulations and procedures provide for checks, balances and independent evaluation of proposals to ensure integrity is maintained throughout the process. Offerors are encouraged to consult the regulations and guidance online. The following is a broad overview of the evaluation process:

Initial Proposals: The Government will open and distribute the proposal volumes. The Government will determine whether offerors have proposed in accordance with the requirements in Section L. The Government will evaluate each proposal independently against the evaluation factors. The Government may elect to make award based on initial proposals; however, the Government reserves the right to enter into discussions.

Discussions: If discussions are applicable, the Government will advise all offerors selected to participate in discussions to address their deficiencies, significant weaknesses, and other areas of risk in their offer. Offerors selected to participate in discussions shall be offered a reasonable opportunity to correct or resolve these areas. The Government may also authorize all offerors selected to participate in discussions to submit price, or other revisions to their offer that may result from the discussions.

Final Proposal Revision (FPR): At the conclusion of discussions, the Government may request that offerors submit their final proposals. The Government will then consider any revisions and/or additional data provided as a result of discussions to determine the best value proposal to the Government. The evaluation criteria in section M shall continue to be the basis for evaluation of the FPRs.

Notifications: The Government will provide any notification required during the evaluation process in accordance with FAR Part 15.5.